



U.S. Army Contracting Command (ACC)
Acquisition Instruction
(AI)

Aug 2025

ACC Acquisition Instruction

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See this AI at the ACC CONOPS ASD SharePoint Page at:
[HQ ACC CONOPS PSD SharePoint page](#)

Version Control: As of 1 October 2021

The version history of this document since 1 Oct 2021 is recorded in the below table. Previous version control history is located at the PSD SharePoint site.

Version Number	Date	Modified By	Description of Modification
14.0	30 Jun 2021	CONOPS PSD	AMC CICA Override Process Update, Update to Peer Review HCA Briefing Template and Administrative Clean-up
15.0	30 Aug 2021	CONOPS PSD	Add HCA Override Package as an attachment, Update Peer Review Templates, Include Guidance on Pricing Risk Involved with Sole-Source Performance Based Logistics, GFP CAR Coding
16.0	1 Oct 2021	CONOPS PSD	Added: - J&As now to be submitted in HCA Dropbox - Reviewing Timing Expectations - Questions and Services Request Process
17.0	15 Oct 2021	CONOPS PSD	Added Property Management requirement to reconcile GFP listing with PIEE
18.0	1 Mar 2022	CONOPS	Updated for AFARS Review - Warranting Program IAW V7 - Peer Review Process - COR/QA/NCR Processes - Other Administrative Changes
19.0	4 Aug 2022	CONOPS PSD	Added: - DoDAAC Information - GFR/GGFR Guidance
20.0	31 Oct 2022	CONOPS	Update: - Warranting Program to align with Army's Version 8 - 201.670 Appointment of Property Administrators and Plant Clearance Officers Added: - Procedures for Expedited Reviews - 51.102 - Authorization to Use Government supply sources - Procedures for Government Property
21.0	12 Apr 2023	CONOPS PSD	- Added: Att 28.1 - GFR/GGFR Annual Review Form - Updated: 5101.290(a)para (a)(i & ii) to add Proc History Table; 1.603(i)(1) FLN Validation; 228.370 – IAW New DCMA Instruction; 33.104 – Protests to the GAO; Att 1.3 - FLN Recognition Program - Removed: 4.802(b) regarding SEC actions to align with FAR definition of Classified Contract; ACC-A & USAMRAA Supplements
22.0	21 July 2023	CONOPS PSD	Added: - Part 19 – Interaction with SB Office - Part 22 – CTIP Guidance
23.0	23 Aug 2023	CONOPS PSD	- Updated TMT references to ETMS2 - Updated 5101.290(a) regarding review and forecasting requirements for SPE Level TS/SEC/SAP actions

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24.0	29 Sept 2023	CONOPS PSD	- Correct Part 19 & 37 numbering - Add Part 42 - Add Attachments 42.1, 42.2, 42.3
25.0	16 Jan 2024	CONOPS PSD	- Update 46.407 & Att. 46.2 - Remove Attachment 46.3
26.0	27 Mar 2024	CONOPS PSD	- Update 5101.290(a) to remove redundant info; consolidate forecasting info under para h - Add section 5101.601-90(b)(4) - Add Attachment 1.4; renumber other Part 1 Attachments accordingly - Add Part 9, subpara 9.103 - Remove Part 37; SAW Waivers (delegation rescinded; now requires SSM or DASA(P) approval) - Update broken links
27.0	28 Mar 2024	CONOPS PSD	- Add Para 46.401(b) – Alternative Surveillance Strategies
28.0	3 May 2024	CONOPS PSD	- Update 5101.290(a) subpara (b)(i) regarding signatures for J&As/D&Fs from 10 days to within a reasonable timeframe - Remove 5101(a) subpara g – DCG Briefing Requirement - Add 4.806 – Transfer of Contract Files - Remove Part 23 and Attachment 23.1
29.0	15 May 2024	CONOPS PSD	- Add AWCS Transition Language and Guidance
30.0	15 July 2024	CONOPS PSD	Add: - 1.601(d), 5101.601-90(b)(2)(G), Part 39, Attachment 1.7 Update: - 5101.290 – DCG & HCA Review & Approval Process - SharePoint Links throughout - Property POC in 201.670 - Att. 1.6 to remove the requirement in paragraph 5(a) for Technical Assistance Visits Remove 17.502(b) regarding ACC CPM 37-2 – Contracting Actions Executed Outside of ACC
31.0	24 Sept 2024	CONOPS PSD	- Update HCA Dropbox Links - Update 4.807 to include new ACWS language for Grants & Non-FAR Agreements - Revise ACWS Attachments 4.1-4.3; Add 4.4 - Update Attachment 42.3 – CR&R Form - Update Attachments 45.1 & 45.2 to reflect GFP clause changes
32.0	19 Dec 2024	CONOPS PSD	- Correct paragraph numbering from 1.104 to 1.404 - Update Supplement Links - Add 4.804 & Attachments 4.1, 4.2 (& renumber Part 4 Att's) - Update Part 33 CICA Stay Override guidance
33.0	23 Apr 2025	CONOPS ASD	- Update division names due to CONOPS restructure - Update 19.201 regarding IGSA's - Update Part 33 - CICA Stay Overrides and Att 33.2 - Update 42.2 to link the new CAS Delegation Tool and remove Att 42.1 & 42.2 and renumber 42.3 – CR&R to 42.1 - Updated Att 1.7a Software Strategy Brief Template format and add Roadmap
34.0	21 May 2025	CONOPS ASD	- Add 5119.201 regarding 2579s under SA IDIQs
35.0	7 Aug 2025	CONOPS ASD	- Add RFA guidance to 5101.290 - Revise 1.603(c) to require CSB SCOs to recognize warrants from other ACC offices - Update 201.170 & 2101.170 regarding Peer Reviews

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This AI, its Attachments and Supplements are found at the [HQ ACC CONOPS ASD SharePoint page](#). Additional resources for information and assistance throughout the acquisition process are available through the Headquarters (HQ), ACC CONOPS ASD SharePoint site.

Submit a Question and Questions and Answers. ACC CONOPS ASD has created an application in SharePoint where questions can be submitted with a repository for all Q&As answered. Questions can be submitted at the above SharePoint site. Please use this site to submit all policy/procedure related questions.

Procurement.Army.Mil (PAM). Deputy Assistant Secretary (Procurement) (DASA(P))'s interactive Knowledge Management (KM) portal known as PAM is the centralized web-based portal housing procurement policy for the Army. It also includes acquisition related news, learning tools and information, samples, and templates. This KM portal provides instant access to Army contracting policies, standard business processes and operating procedures, updates to critical programs and systems, and provides access to the Virtual Acquisition Office (VAO) account.

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PART 1 – FEDERAL ACQUISITION REGULATIONS (FAR) SYSTEM

SUBPART 1.1 – PURPOSE, AUTHORITY, ISSUANCE

1.100 How to Use the Instruction.

a. General. To enable ease of use and address the variety of operational contracting and oversight requirements found within the ACC, the published format of the ACC AI is aligned with the FAR Parts and Subparts structures. However, as the AI serves as a complementary document and not a repetitive reproduction of the FAR or its supplements, the FAR Parts and Subparts format contained within the Table of Contents are generalized to reflect the comprehensive nature of the topic areas.

b. Using the Instruction. The contracting professional should look to this ACC AI once their initial review of the FAR, its supplements and any published deviations are complete. Next, the professional would look in the AI to see if the FAR paragraph for the contracting subject is addressed. Upon finding the subject area, follow the instructional information. Should clarification on this AI be required, please submit a question at the [ACC CONOPS ASD SharePoint Page](#).

1.101 Purpose of the Acquisition Instruction.

This instruction serves to standardize, improve, and assure quality business processes across the organization and to establish general operational guidance for procurement procedures established by higher headquarters, ensuring consistency across the ACC enterprise. This instruction also provides implementing guidance for Federal, Department of Defense (DOD), and Department of the Army (DA) acquisition regulations to maintain uniform practices throughout the command.

1.105 Issuance.

This AI and any supplemental memorandum, procedures, or similar guidance shall not duplicate, overlap, or conflict with any other regulation. Guidance and definitions for key related documents are as follows:

a. Head of the Contracting Activity (HCA) Memorandums. At times, the HCA may communicate ACC specific requirements through an HCA Memorandum. These memorandums will be incorporated into the AI, as appropriate.

b. ACC Contracting Notes. ACC CONOPS ASD issues ACC Contracting Notes to clarify or provide general guidance on higher authority policies, processes or procedures. ACC Contracting Notes that provide acquisition instructions will be incorporated into this ACC AI as they are issued. ACC Contracting Notes that are incorporated into the ACC AI will not formally be rescinded but will be considered overcome by events.

c. ACC Contracting Centers/Contracting Support Brigades (CSBs)/Mission Installation Contracting Command (MICC) Supplements. ACC AI Supplements capture each SCO's local procedures. These Supplements are limited to local approval levels, local Contracting Officer (KO) warrant procedures, local processes to obtain approval of documents, and any remaining procedures unique to the operating environment. Each SCO is required to maintain their Supplement in real time and notify ACC CONOPS ASD as significant changes occur. See the Supplements Section on the last page of this AI for links to each organization's Supplement.

201.170 and 5101.170 Peer Reviews

The HCA Peer Review Process is at Attachment 1.1. ACC CONOPS ASD is the program manager for the HCA Peer Review Process. When an HCA Level Peer Review is required for procurements designated as a special interest program, submit Peer Review Request Forms (Attachment 1 - Peer Review Request Form of the Peer Review Attachments) to the [HCA Dropbox](#) to schedule the peer review.

SUBPART 1.2 – ADMINISTRATION

5101.290 HCA and Deputy to the Commanding General (DCG) Routing Concurrence and Approval Process

The ACC Commanding General, as the HCA, will have visibility of all ACC contracting actions requiring reporting, review, concurrence or approval by DASA(P), the Senior Procurement Executive (SPE)/Army Acquisition Executive (AAE)/Assistant Secretary of the Army (Acquisition, Logistics, and Technology (ASA (ALT))), or Under Secretary of Defense (Acquisition and Sustainment) (USD(A&S)). All actions being submitted to the DASA(P), SPE/ AAE/ (ASA (ALT)), or USD(A&S) are currently captured through a monthly forecast tasker from ACC to the SCOs for submission to DASA(P).

Follow the procedures, guidance, and instructions below for submitting or reporting actions requiring HQ ACC review or approval. Documents not in compliance with this instruction will be returned without action.

a. Secure Environment Contracting (SEC) Actions:

i. For ACC SCO level packages associated with SEC, email the ACC SCO with the request for review and to coordinate review in a SIPR or higher location.

ii. For HCA level packages associated with SEC, email ACC CONOPS Contract Integration Management Division (CIMD) with the request for review and to coordinate review in a SIPR or higher location. Do not attach any sensitive documents in the email. Do not submit the action in the HCA Dropbox.

iii. SEC actions, including SPE Level J&As, requiring DASA(P) and/or SPE/AAE/ASA(ALT) review and approval do not require review by HQ ACC and may be submitted directly to the applicable office once endorsed by the SCO. Ensure these actions are reported on the monthly forecast spreadsheet as detailed below.

b. SPE Level J&As:

i. SPE Level J&As from an organization without a GO/SES require DCG concurrence and shall be submitted directly to Mr. Daniel Gallagher for concurrence in PCF once all local approvals have been obtained. See paragraph (c) below for detailed submission instructions. HQ ACC Legal and CONOPS will no longer be in the review process.

ii. SPE Level J&As from organizations with a GO/SES SCO shall be submitted directly to ODASA(P) after the SCO has signed the J&A. There is no requirement to submit the J&A to HQ ACC for concurrence.

c. **Actions for ACC SCO/DCG concurrence or approval** (ACC SCO Level actions are J&As/D&Fs/Requests for Approval (RFAs) requiring GO/SES SCO approval from organizations that do not have a GO/SES SCO):

i. **Submission Instructions:**

- Submit the Primary Document for either Concurrence (SPE Level J&As) or Approval, as applicable, directly to Mr. Daniel Gallagher in PCF.
- Allow 2 business days in PCF for concurrence/approval
- Refer to paragraph (b) above for guidance on which SPE Level J&As require DCG concurrence

ii. **Package Contents:**

- Primary Document (e.g. J&A, D&F, RFA)
- Subfolder containing supporting documentation (e.g. legal review, etc.)
- Include the Procurement History table shown below either in the Procurement History paragraph of the J&A, Market Research Report, or in a separate document titled "Procurement History" when appropriate.

Procurement History							
Contract Vehicle/ Contract Type	Contract Number	Award Date	Competitively Awarded (Y/N)	Awardee/ Contractor	Current Award Expires	Dollar Value	TDP (Y/N)

iii. **Formatting Requirements:**

- Actions for ACC SCO approval must include the ACC SCO's signature block formatted with a field for digital (CAC) signature.
- If the Primary document requires multiple signatures, submit via PDF.
- If the Primary document requires only one signature, the document may be submitted either as a MS Word document or PDF so long as it is formatted for signature.

iv. **Signatures.** Each document must be signed and dated either with hard or electronic signatures.

1. All signatures (e.g., legal, requiring activity, KO, SCO, etc.) on the documents must be captured within a reasonable timeframe (e.g. approx. 45 days) prior to initial submission to HQ ACC. This requirement only applies to the Primary document requiring concurrence/approval (e.g. D&F, J&A) and the legal opinion supporting those documents; it does not apply to supporting documentation.

2. Depending on the nature of the comments, the document may need to be re-signed. Substantial changes are considered changes that affect the overall acquisition strategy, quantity and/or length of effort, etc. If substantial changes are made, then the documents will need to be re-signed by the stakeholders to ensure that they are aware of and support the changes. Minor changes will not need to be re-signed.

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v. **Urgent/High Priority Actions:** For actions which require signature sooner than 2 business days, the SCO for that action shall send an email to Mr. Gallagher indicating the urgency/priority of the action and that signature is needed as soon as possible.

d. **Actions for HCA approval:**

i. **Action Types:** Actions include, but are not limited to:

- D&Fs/Waivers for HCA approval
- Unauthorized Commitments requiring ratification by the HCA
- SCO and SCO (Acting in the Absence of the SCO (AIAOS)) appointments
- HCA Competitive Peer Reviews for Actions Exceeding \$1B.
- CICA Stay Override (See Part 33 and Attachments 33.1 & 33.2)
- **NOTE:** The HCA does not review Acquisition Plans (AP) or Acquisition Strategies (AS). If the AP or AS requires a higher-level review, HQ ACC maintains visibility of these via the monthly forecast spreadsheet but does not review these documents separately.

ii. **Legal Opinion.** Actions excluded from the legal opinion requirement include Peer Reviews, requests for SCO Appointments, and requests for statutory delegation authority. All other actions require a full, written legal opinion on local letterhead to either the KO or local SCO. The legal advisor's signature on the review/coordination page or an email stating legal sufficiency or concurrence does not meet this documentation requirement. See Attachment 1.2 for the Legal Opinion Template.

iii. **Submission Instructions:**

- Submit the package via the [HCA Dropbox](#)
- ACC may reject a package if it is missing required documentation or is insufficiently supported.
- **Normal Reviews:** Allow 10 business days for concurrence/approval. This does not include time required for any rework/comment adjudication that has to be accomplished.
 - The timeline starts when a complete package is received in the HCA Dropbox. The timeline stops when the package is returned to the KO for rework/comment adjudication or when the package is approved. When the package is received after 1400 CST, the timeline begins the next business day.
 - While our goal is to review the package concurrently at the HQ ACC level to the best of our abilities, please note each package may be subject to successive rounds of review based on quality and responses to comments.
- **Expedited Reviews:** See paragraph (vii) below.

iv. **Package Contents:**

- Primary Document (e.g. D&F, Unauthorized Commitment, etc.)
- Supporting documentation to include, but not limited to:
 - Legal Opinion (if required) and any legal issues/adjudication of issues
 - Signature page with hard or electronic signatures
 - Applicable enclosures
- **Expedited Actions only:** SCO Memo providing justification and milestone schedule addressing the urgency as well as the circumstances that led to the urgency, and the

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harm to the Government if the action is not processed urgently.

v. Formatting Requirements:

- The HCA's signature block must be formatted with a field for digital (CAC) signature.
- Submit the Primary document via PDF.

vi. Signatures. Each document must be signed and dated either with hard or electronic signatures.

1. All signatures (e.g., legal, requiring activity, KO, SCO, etc.) on the documents must be captured within a reasonable timeframe (e.g. approx. 45 days) prior to initial submission to HQ ACC. This requirement only applies to the Primary document requiring concurrence/approval (e.g. D&F) and the legal opinion supporting those documents; it does not apply to supporting documentation.

2. Depending on the nature of the comments, the document may need to be re-signed. Substantial changes are considered changes that affect the overall acquisition strategy, quantity and/or length of effort, etc. If substantial changes are made, then the documents will need to be re-signed by the stakeholders to ensure that they are aware of and support the changes. Minor changes will not need to be re-signed.

vii. Expedited Reviews:

1. To the greatest extent possible, expedited reviews should be requested when events outside of the SCO's control have occurred and should not be requested merely because the acquisition is behind schedule.

2. Expedited Review Procedures:

- a. Provide a heads-up notice via email to CONOPS Director, HCA, and DCG at least one (1) week prior to submittal (if possible).
- b. Be sure to contact Lead POC (Ms. Audrey Brown) and cc the CIMD mailbox at usarmy.redstone.acc.mbx.hgacc-conops-cimd@army.mil to provide a heads-up and request an expedited review as follows:
 - i. The SCO must request an expedited review in writing and include a justification and milestone schedule addressing the urgency as well as the circumstances that lead to the urgency. Additionally, the justification must address the harm to the Government if the action is not processed urgently.
 - ii. Include the words "Urgent Support for [specify effort]" (i.e., EUCOM D&F, J&A, etc.) in subject of email.
 - iii. Include the approval need date in the email.
 - iv. Provide draft document(s) needing approval and legal review with heads-up email (if possible).
 - v. Once the package is ready, submit via the HCA Dropbox IAW normal procedures.

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e. Monthly Forecast: The HCA maintains visibility of all ACC actions requiring reporting, review, concurrence or approval by the SPE/AE/ASA(ALT) or USD(A&S) using the monthly SPE forecast spreadsheet. The spreadsheet shall contain ALL actions requiring higher level approval, to include Top Secret, Special Access Program, and SEC actions. ACC Centers/MICCs/CSBs shall complete this spreadsheet via a formal monthly tasker. SEC actions requiring DASA(P) and/or SPE/AE/ASA(ALT) review and approval, though not reviewed by HQ ACC, should be included in the monthly forecast. The spreadsheet shall not include actions which will not be submitted outside of HQ ACC (i.e., those to be approved by the DCG/ACC SCO or HCA).

SUBPART 1.4 – DEVIATIONS FROM THE FAR

1.404 Deviations from the FAR.

a. Individual Deviations. Each Senior Contracting Official (SCO) is authorized to approve individual deviations.

b. Class Deviations. Submit all class deviations requiring higher headquarters approval or publication in the Federal Register to the [HCA Dropbox](#) for review and staffing. Once the HCA concurs, ACC CONOPS CIMD will provide the deviation request back to the requesting organization. The requesting organization will then submit class deviations to Headquarters, Department of the Army (HQDA) via the ETMS2 for approval.

SUBPART 1.6 – CAREER DEVELOPMENT, CONTRACTING AUTHORITY, AND RESPONSIBILITIES

1.601 General Acquisition Authority and Delegations.

a. SCO and/or SCO (AIAOS) Appointments. SCO/AIAOS Appointment request documents requiring Head of Contracting Activity approval from Army Contracting Command (ACC) and MEDCOM organizations shall submit a request at a minimum of 30 days prior (or as soon as it is known) to the arrival of the individual assuming a SCO/AIAOS position. Requests shall be submitted to the [HCA Dropbox](#) and include the following documentation:

- i. Attachment 1.3, HQ ACC CONOPS SCO/AIAOS Appointment Request Form.
- ii. Memorandum Request signed by the current SCO or Deputy SCO
- iii. Biography
- iv. Contracting DAWIA Level III Certification/Army Advanced Professional Credentialing (ACRB or Certificate)
- v. Continuous Learning Points (CLPs) information
- vi. Signed three-year Critical Acquisition Position Service Agreement, (DD Form 2888 Tenure Agreement document (as applicable))
- vii. Army Acquisition Corps (AAC) Membership (ACRB or Certificate)

b. Delegations/Re-Delegations. The Army's and ACC's intent is that unless otherwise stated in the FAR or its Supplements or in this AI, if an authority is delegable, it has been delegated by virtue of the HCA and SCO appointments. Separate re-delegation memorandums will not be issued unless there is a specific requirement for a written special delegation or re-delegation of authority.

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c. ACC Level SCO. The ACC DCG has been delegated SCO responsibilities for ACC. This delegation covers all the delegable responsibilities of the HCA. Additionally, these duties include acting as SCO when an organization's SCO is unavailable; acting as SCO in the event a SCO recuses him/herself from an acquisition; and Acting as the HCA designee for actions that require a GO or SES approval, when the SCO does not possess such a grade.

d. SCO for Digital Procurements. Army Directive 2024-02 (Enabling Modern Software Development & Acquisition Practices) identified the ACC-APG SCO as the cognizant SCO for all digital procurements to ensure appropriate oversight of digital contract actions. See Attachment 1.7, Implementation of the Army Software Directive -Business Rules, for guidance on the alignment, coordination, and use of the ACC-APG AI Supplement for applicable actions.

5101.601-90(b)(2)(G) ACC HCA contracting authorities and responsibilities.

a. Digital Procurements and Software Development. IAW Army Directive 2024-02 (Enabling Modern Software Development & Acquisition Practices), a Digital Contracting Center of Excellence (DC3oE) has been established.

i. ACC-APG is designated as the DC3oE; however, they will not be the only contracting office executing digital actions. Contracts or agreements primarily for software development efforts will be executed by one of the six Contracting Centers (ACC-APG, ACC-RI, ACC-RSA, ACC-NJ, ACC-DTA, or ACC-ORL).

ii. Reference Attachment 1.7, Implementation of the Army Software Directive - Business Rules, for guidance on the alignment, reviews, and coordination of actions that fall under AD 2024-02.

5101.601-90(b)(4) MEDCOM HCA contracting authorities and responsibilities.

a. U.S. Army Health Contracting Activity (USAHCA), the contracting activity for U.S. Army Medical Command (MEDCOM), is responsible for awarding and administering contract actions which fall under Product Service Code (PSC) subcategories 10.2, Medical Equipment and Accessories and Supplies and 10.3, Healthcare Services. Award or administration by any other contracting activity requires a waiver.

b. Contracting offices seeking a waiver to award or administer a requirement which falls under PSC 10.2 or 10.3 shall coordinate with USAHCA for approval by sending a USAHCA Waiver Request Memorandum (Attachment 1.4 - USAHCA Waiver Request Template) directly to Mr. Moton Hopkins, Director, Contracting Operations, Email: moton.hopkins.civ@health.mil. If approved, a copy of the approved waiver shall be retained in the contract file.

1.603 Selection, Appointment, and Termination of Appointment for KOs.

Note: "(I) annotates the paragraph location in the Army's Warranting Program Guide Version 8.0)."

a. ACC's Warranting Program (Aligned with 1.0). ACC's Warranting Program addressed below is aligned with Army's Warranting Program Guide Version 8.0 and addresses procedures for selecting, appointing, and terminating Army KOs to include Procuring Contracting Officers (PCOs), Administrative Contracting Officers (ACOs) and Termination Contracting Officers (TCOs), as well as Grants Officers

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(GOs) and Agreements Officers (AOs) throughout the Army Contracting Enterprise. ACC also has a Frequently Asked Questions on the Warranting Program located at the ACC AI SharePoint Site.

b. Multiple Warrants (*Aligned with 4.4*). Individuals shall possess separate warrants for each individual authority and type of instrument (FAR and Non-FAR based) for which they will be signing. An individual can have more than one type of warrant such as a PCO and GO warrant but a KO cannot have two warrant amounts for the same type of warrant (e.g., one individual having a PCO warrant for \$250M and that same individual having another PCO warrant for \$500M). The dollar amount of the warrant should be based on the needs of the office as well as the qualifications of the individual.

c. Transfer/Recognition of Warrants (*Aligned with 4.4.1*):

i. Except as outlined in paragraph ii below, SCOs may recognize the qualifications of an individual previously warranted by another SCO (internal or external to Army and the Army Contracting Enterprise) and make a determination if the prospective candidate must sit for a Contracting Officer's Review Board (CORB), Grants Officer Review Board (GORB) or Agreements Officer Review Board (AORB) based on the individual's experience and prior warranting history. If a SCO chooses to recognize the employee's qualifications from the other organization, the SCO must still issue a new warrant to that employee. SCOs shall support their determination in writing, providing information and or actions taken to support their decision. Supporting determination shall be retained with other documentation in the Virtual Contracting Enterprise (VCE)-Warrants Module.

ii. ACC CSB SCOs shall recognize the qualifications, board results, and warrant of an individual previously warranted by another ACC SCO, provided there is a need for the warrant at the CSB, and the prior warrant was suspended or terminated solely due to reassignment, extended TDY, or deployment. CSB SCOs shall document this recognition in writing, providing information to support the decision. As VCE does not have the capability for warrant transfers, the CSB SCO must issue a new warrant to the individual of the same type and either the same or lesser value than their previous warrant.

d. Local SCO Warrant Program (*Aligned with 5.3*):

i. Each SCO shall address the procedures to be followed when a candidate passes or fails to pass the Board (e.g., timing of notification, re-boarding procedures, remedial training, etc.).

ii. The SCOs shall establish their warrant procedures to supplement the DOD, Army and ACC Warranting Programs and include their warrant procedures as part of their AI Supplements.

e. Standard Warrant Thresholds (*Aligned with 7.1 and 7.2*). All new warrants shall be issued at the fixed warrant value thresholds identified in table 1 of the Army's Guide. Additionally, if a warrant value is one that has crossed to a new classification because of the updated Army Program, a CORB is not necessary if the warrant amount does not change. A CORB would only be necessary if a warrant value is being increased. For example, a KO was issued a \$7M warrant under the Version 5 of the Army Warranting Program, which was considered a Class II Warrant. The updated version (Version 6) has \$7M in Class III of the Warrant Classification. If the person's warrant stays at \$7M, then a CORB is not required for this classification change. However, if the person wishes to have a \$10M warrant, then a CORB will be required.

ACC Acquisition Instruction

f. Warrant Limits/Amounts *(Aligned with 7.3)*.

i. The purpose of the updated Army language is to ensure that the warranted KO has the authority to perform actions pertaining to the overall contract value. For example, if the contract action is an IDIQ contract with an overall ceiling of \$1B, the KO signing the contract(s) must have an unlimited warrant to cover the \$1B ceiling. When exercising an option or increasing the scope of a contract, the warrant amount must cover the cumulative value of the contract in those situations.

ii. Instant actions are those such as an individual delivery or task order or administrative, funding/defunding or administrative modification that do not increase the scope or exercise an option. The KO signing these actions must have a warrant amount that covers that instant action.

g. CORB, GORB and AORB *(Aligned with 8.0)*.

i. Membership:

1. The SCO must chair the Board. In the absence of the SCO, the Deputy or Policy Chief may chair the Board. The chair shall participate as a member of the board and be present during the interview of the candidate.

2. The Board will include a minimum of three members and may not exceed five members (including the chair). A minimum of two members must be members of the acquisition team (e.g., SCO or KO, Legal, Procurement Analyst). At least one member must currently hold or have previously held a warrant equal to or greater than the warrant level being considered for the candidate.

3. Board members must be well versed and experienced in contracting and associated career fields in order to properly evaluate a candidate's answers, (e.g., Contract Attorney, Program Manager, Engineer, Property Administrator, etc.).

ii. Conduct of the Board.

1. The Board assesses a candidate's experience, training, business acumen, judgment, and knowledge of policies, procedures, and regulations. The Board must interview the warrant candidate. All Board members must attend the interview. The Board is encouraged to use video teleconference and/or teleconference when respective parties are located in different locations.

2. Interview Questions. The Board will use the Review Board Repository of questions located on [PAM's Army Warranting Program page](#) to obtain their questions for the interview. The CORB may utilize as many questions as necessary to evaluate the candidate. The Board should also choose the questions that are most appropriate for the warrant class being considered and type of work being performed. The questions may not have right or wrong answers. Candidates may, based on the assumptions they make, answer questions differently. Candidates may ask questions, make assumptions, and discuss potential outcomes. Board panel members should engage the candidate and follow-up with scenarios. Interaction between the candidate and the Board is essential. Additionally, the Board should expect a more in-depth answer to questions as the warrant class increases.

3. Maximum Interview Time. The SCO will establish Board implementing procedures that specify the maximum authorized candidate interview time (i.e., no more than 2 hours).

ACC Acquisition Instruction

h. Written testing. ACC does not require written testing. SCOs may require candidates to answer written questions. A SCO may not replace the Board interview process with a written test.

i. Foreign Local National (FLN) Validation and Warranting.

i. In accordance with the DA's Contracting Validation for FLN Policy and Procedures, validation is the process through which the Department of the Army determines that a FLN meets the education, training, and experience standards or equivalent established in the contracting acquisition career field. FLN Validation standards mirror those for the DoD acquisition workforce certification. In order to receive FLN Validation, the individual must comply with Back-to-Basics standards as well as the most recent Defense Acquisition University (DAU) requirements for the Contracting Professional Functional Area. The ACC Command Memorandum - Foreign Local National (FLN) Recognition Program Guidance and Procedures includes additional information on recognizing FLNs (see Attachment 1.5).

ii. CSBs shall submit their validation packages to the [HCA Dropbox](#) for processing.

1.604 Contracting Officer's Representative (COR).

See Attachment 1.6 "ACC's Contracting Officer's Representative (COR) Management Plan" which documents and describes the training and management strategy for CORs, to ensure continuity of standards are maintained across ACC in accordance with DoDI 5000.72 "DoD Standard for COR Certification". In conjunction with these instructions, each SCO will develop local COR Management Plans and Standard Operating Procedures (SOPs) as addressed in the attachment.

201.670 Appointment of Property Administrators and Plant Clearance Officers.

a. Personnel selected to perform duties of Property Administrators (PA) and Plant Clearance Officers (PLCO) for ACC Contracting Office's will be appointed and trained IAW ACC Command Policy Memorandum (CPM) 715-2 "Command Policy Memorandum - Property Administrators, Plant Clearance Officers and 920A/92Y Program" dated 7 Sep 2022 and located on the HQ's ACC SharePoint under the [Official Documents/Command Policy Memorandums folder](#).

b. Nomination. IAW CPM 715-2, the HQ ACC CONOPS Lead Property Administrator is the sole appointment authority for PA and PLCO administering ACC contracts. Contracting Centers, MICCs, and CSB's will submit a PA and PLCO nomination package to the Lead Property Administrator, Ms. Renee Guice, lakeshia.r.guice.civ@army.mil. The submittal package shall include:

i. Nomination Letter identifying the member(s) selected for PA and PLCO appointment. The nomination should describe the member's business acumen, judgment, character, and ethics required to perform the PA and PLCO roles and responsibilities.

ii. Copies of the individuals Contracting Professional Certification or Industrial Property Management Credential, and HQ ACC requirements.

iii. Verification that the individual(s) have completed or assisted in the completion of a minimum of 3 complete PMSA's within the HQ ACC VCE PMSA tool and have made determination of loss determinations on a minimum of 5 loss cases within the Property Loss Module within PIEE for appointment as a Property Administrator.

ACC Acquisition Instruction

iv. Verification that the individual(s) have accepted a minimum of 5 inventory schedules and closed a minimum of 5 disposition cases within the PIEE Plant Clearance Module for appointment as a Plant Clearance Officer.

v. Non acquisition personnel to include 920As/92Ys will need to provide verification of the completed training requirements associated with Industrial Property Management Credential and HQ ACC requirements.

1. IND 105V Contract Property Fundamentals
2. CON 0510 Managing Government Property in the possession of Contractors
3. CLM 037 Physical Inventories
4. IND 205V Contract Government Property Management Systems and Auditing Concepts
5. CLM 200 Item-Unique Identification
6. Contract Administration Services (CAS) Training

c. Termination. Supervisors will request a PA / PLCO Termination Request to the Lead Property Administrator as required. PA / PLCO's will be terminated in cases such as employment changes, or performance issues. Upon termination, the Lead Property Administrator will rescind the appointment by issuing a Termination Letter to the PA/PLCO, and informing the Center, MICC, or CSB of the action.

d. Waivers. IAW CPM 715-2, the Lead Property Administrator may grant waivers to the certification requirements only under unusual and compelling circumstances when an appointed or otherwise fully qualified individual is not available, the nominated person demonstrates the knowledge and ability to perform the function, and urgent mission requirements dictate an appointment. When such conditions exist, the Centers, MICCs, and CSB's will provide a nomination package with waiver request to the Lead Property Administrator. The waiver request will describe the reason for a waiver, and why the organization feels this member is qualified to perform the duties without the Defense Acquisition Credential Program and HQ ACC requirements. To receive consideration for a waiver, explain the member's previous work experience in areas such as contracting, quality assurance, auditing, and/or providing oversight on contractor performance.

e. Workload. While the HQ ACC CONOPS Lead Property Administrator is the authority for appointing and terminating PA/PLCO's, the appointee's supervisory chain is responsible for work assignments, work quality, and all other supervisory responsibilities.

5101.690 Agency Control and Compliance Procedures.

a. Under the DASA(P) concept of a tiered PMR program, ACC CONOPS Acquisition Support Division (ASD) is responsible for reviewing operational SCO offices, and subordinate contracting activities in which SEC takes place. The only exception is MICC HQ (an Office of the SCO); ACC CONOPS ASD is responsible for validating/reviewing the MICC PMR program, while the MICC HQ reviews their operational SCO offices. SCO offices are responsible for reviewing operational Directors of Contracting (DOC), and/or sub-element directorates; and DOCs are responsible for review of any subordinate contracting activities. PMR schedules are posted to the ACC CONOPS ASD SharePoint site, which allows all ACC activities to know when they are scheduled for a PMR.

ACC Acquisition Instruction

b. The PMR process provides the leadership within ACC timely feedback and a written record of the strengths and weaknesses within a specific organization. The PMR process helps assess the overall health (level of risk) of the organization's internal control environment for contract operations, and ultimately the Command. An Annual Summary Health Report (ASHR) is required to be submitted annually by the HCA to the DASA(P). Additionally, the PMR process helps identify systemic weaknesses and provides an opportunity to share best practices across the Command. ACC CONOPS ASD will publish these in order to standardize or improve the acquisitions within ACC.

c. Additional information related to the PMR Process may be found on the [HQ ACC CONOPS ASD SharePoint site](#).

PART 4 – ADMINISTRATIVE MATTERS

SUBPART 4.1 – Contract Execution.

4.1. AMC Threat Awareness and Reporting Program (TARP) Requirements.

In accordance with AR 381-12 paragraph 1-10(b), contract employees with security clearances that are working on AMC-related Government contracts are authorized and will attend the scheduled live training and provide their certificates to their cognizant Government COR. The COR will ensure Army contractors with security clearances, working on AMC-related Government contracts, comply with TARP requirements specified in AR 381-12. The requiring activity will ensure that TARP requirements are included in future classified contracts via the statement of work (SOW) and the DD Form 254 (Department of Defense Contract Security Classification Specification) and on unclassified contracts as a SOW requirement as appropriate when contractors hold clearances. ACC will ensure that applicable future AMC contracts include the requirement for cleared AMC contractors to receive TARP training. This will be coordinated and monitored through the respective requiring activity.

SUBPART 4.6 – Contract Reporting.

4.603. Policy.

All ACC Contracting Center/CSBs/MICC shall ensure the CAR Statement is consistently annotated as "Transaction uses GFP" on all subsequent contract actions once GFP is provided. Change of this field to "Transaction does not use GFP" shall only be annotated once all GFP close-out actions have been completed by the appointed Property Administrator/Plant Clearance Officer or cognizant KO.

4.603(c). Policy.

In accordance with FAR 4.603(c) and the FPDS Government User's Manual, the KO must report and identify the Program/Funding Office Code as the requiring organization providing the preponderance of funding for the contract action. For unfunded actions, such as base Indefinite Delivery, Indefinite Quantity (IDIQ) Contracts, Requirements Contracts and Master Blanket Purchase Agreements (BPAs), ACC KOs shall use the DoDAAC of the organization anticipated to provide the preponderance of funding as the Program/Funding Office Code in element 4D. ACC KOs shall not utilize the Contracting Office's/KO DoDAAC(s) in coding of the Program/Funding Office Code in element 4D. For ACC funded actions, an ACC GFEBs DoDAAC should be used as the Program/Funding Office Code in element 4D, not the Contracting Office/KO DoDAAC.

ACC Acquisition Instruction

Specific directions:

a. For coding the CAR for the Contracting Office Code – Element 4B:

i. For all contract actions issued under ACC's procurement authority, all Contracting Office codes used by ACC in element 4B on the CAR must be an ACC Contracting Office's/KO DoDAAC type. Likewise, the 'issued by' and 'administered by' (only when ACC administers the contract) sections of contract actions must be an ACC Contracting Office's/KO DoDAAC type.

ii. As with all other Army DoDAACs, ACC DoDAACs are registered and maintained in the Army Enterprise System Integrated Portal (AESIP) under an ACC Unit Identification Code (UIC). AESIP identifies DoDAAC types. Only the 'KO' type will be used as Contracting Office codes. All Contracting Offices/KOs DoDAACs will have the 'Procurement Authority' set to "Yes" and 'Funding Office' set to "No". The DoDAAC profile can be viewed on the DLA DoDAAD site at <https://www.dla.mil/Defense-Data-Standards/Committees/DODAAD/> under the 'simple search' link on this page.

iii. ACC Contracting Offices ensure VCE organizational tables identifying ACC Contracting Offices match AESIP. Contact the ACC G4 for ACC DoDAAC management in AESIP. Submit a help desk ticket for DoDAAC management in procurement systems.

b. In coding the CAR for the Program/Funding Office Code – Element 4D:

i. For base IDIQs, Requirement Contracts, master BPAs, and other actions that do not have funding, use the DoDAAC (for DoD organizations) or Activity Address Code (AAC) (for non-DoD organizations) of the organization anticipated to provide the preponderance of funding on the orders or calls as the Program/Funding office code.

ii. ACC Contracting Office's/KO DoDAACs shall not be used as a Program/Funding Code. Since these DoDAACs will have the Funding Office Code set to "No," using these DoDAACs will result in a Procurement Data System (PDS) compliance error.

iii. For contract actions actually funded from ACC budgets, use an ACC GFEBS DoDAAC, not an ACC Contracting Office's/KO DoDAAC in element 4D. ACC has, or should have, separate GFEBS DoDAACs to use for funding ACC contract actions; specifically, actions where we (ACC) are the requiring activity for supplies and/or services acquired in support of ACC mission requirements (not customer/mission partner requirements). ACC GFEBS DoDAACs will have the Funding Office set to "Yes." It will also have Procurement Authority set to "Yes" in order to allow ACC GPC and GSA purchases. Contact the ACC G8 and G4 for identification of ACC GFEBS DoDAACs.

iv. For actions funded by Military Interdepartmental Purchase Request (MIPR) and processed into a GFEBS Purchase Request by an ACC Resource Manager, use the DoDAAC or AAC of the funding organization sending the MIPR, not the ACC DoDAAC processing the MIPR into GFEBS.

v. No ACC DoDAAC (KO, GFEBS, or other type) will be used in element 4D of CARs if ACC is not providing the preponderance of funding or anticipated to provide the preponderance of funding for the action.

NOTE: DoDAACs can also be found <https://www.dla.mil/Defense-Data-Standards/Committees/DODAAD/>.

SUBPART 4.8 – GOVERNMENT CONTRACT FILES

4.802 Contract Files.

a. ACC determines acquisition workload distribution, knowledge requirements, service levels and Procurement Acquisition Lead Time (PALT) metrics based on input into the Virtual Contracting Enterprise (VCE) modules. The VCE modules contain primary tools for tracking all contract actions (excluding credit card and the Non-Standard Acquisition Programs (SNAP)). There are many reports available in VCE dashboards at <https://vce.army.mil/Portal> to allow Contract Specialists and KOs to view and manage workload and status of actions.

b. As the Army is preparing to transition our contracting writing systems (SPS/PD2 and PADDS) to the new Army Contract Writing System (ACWS), HQ ACC is directing mandatory use of the Procurement Data Standard (PDS) validation tool for all contract actions. Only contracts that are PDS compliant will be electronically migrated to the ACWS database. KOs and Contract Specialists shall ensure new contract awards submitted through PADDS and PD2 are PDS compliant prior to time of award. Additionally, KOs and Contract Specialists shall ensure contract modifications submitted through SPS/PD2 are PDS compliant prior to/at time of award. The goal is for 100% PDS compliance for all new SPS/PD2 and PADDS contracts and contract modifications executed under this guidance by the time ACWS goes live.

4.804 Closeout of contract files.

a. KOs shall use the Procurement Integrated Enterprise Environment (PIEE) Contract Closeout (CCO) Module; hereinafter referred to as the “PIEE CCO Module”, to close contracts unless the contracting office is coordinating with Defense Pricing, Contracting, and Acquisition Policy (DPCAP) for a mass closeout.

i. The PIEE CCO Module performs both automated and manual contract closeouts. Automated contract closeouts are performed in accordance with FAR 4.804-5(a) and DFARS PGI 204.804 (1)(vi). When the conditions for automated contract closeout are not met, Contracting Officers shall use the manual closeout capabilities within the PIEE CCO Module. The PIEE CCO Module allows Contracting Officers to close multiple contracts at one-time called Bulk Closeout. The CCO module pulls information from PIEE into the DD Form 1594 reducing the time required for closeout. The PIEE records destruction date is based on the closeout date and the use of the PIEE CCO Module facilitates the retention and archive process and timelines. Contracts closed using this module automatically post the DD Form 1594 to the PIEE Electronic Data Access (EDA) Module and transmit the required 567 file to the Federal Procurement Data System (FPDS) IAW DFARS PGI 204.804-1 and 204.804-2. The VCE contract closeout dashboards obtains and displays closeout data and status from FPDS only. ACC uses the VCE closeout dashboards displaying the FPDS closeout status for ACC metrics. Therefore, use of the PIEE CCO Module is the most reliable method to ensure the closeout status is accurately reflected in EDA, FPDS, and VCE dashboards.

ACC Acquisition Instruction

ii. Input the Resource Manager's (RM) email address in the "Contract Closeout Worksheet – Ready to Close" section under "Email Notifications" prior to closing the contract in the PIEE CCO Module. This provides PIEE system notification of the closure to the RM.

iii. If the RM's email address is not entered in the PIEE CCO Module for PIEE system notification, provide the DD 1594 or recommended Memorandum for Record (MFR) at Attachment 4.1 – MFR - PCF Closure Memorandum to the Resource Manager (RM) and post either document to all applicable PCF cabinets to close the cabinet and start the retention period.

b. DPCAP Mass Closeouts: DPCAP will assist with both mass and interim closeouts by executing script closeouts, a form of automated closeouts, in EDA and FPDS. Once script closeouts are complete, EDA will have a DD Form 1594 posted and FPDS will be marked closed.

i. Mass Closeouts: The mass closeout process and spreadsheets are for contracts previously closed in the contract writing system and are past the records retention date, but the closeout status is not annotated in EDA or FPDS. SCO organizations are authorized to submit requests for mass closeouts to the DPCAP points of contact (POCs) using the [mass closeout spreadsheet](#) at [DoD Procurement Toolbox](#).

ii. [Interim Bulk Closeout](#) may be executed when an organization has a large number of contracts to close and utilizing the PIEE CCO module is not feasible. Records closed utilizing Interim Bulk Closeout procedures are still within the required records retention period. Data elements on the spreadsheet at [DoD Procurement Toolbox](#) will be utilized to populate a DD 1594. The DD 1594 will automatically be sent to EDA and FPDS to mark the record as closed.

iii. Submit completed mass and interim closeout spreadsheet to DPCAP POCs tyler.a.caron.ctr@mail.mil and manav.p.sheth.ctr@mail.mil. These POCs will work with EDA and FPDS to run scripts to close contracts and provide load reports. This process may take up to 60 days to complete. Track the status of the mass closeouts using the VCE closeout dashboards which reflect the closeout status in FPDS.

iv. Once script closure validation has been received from DPCAP, provide the recommended MFR at Attachment 4.2 – MFR - Script Contract Closeout Completion Statement to the RM and post the MFR to all applicable PCF cabinets to close the cabinet and start the retention period.

v. The PCF cabinet must be closed with a date in the closeout pane to start the retention period for the cabinet. The use of a MFR for contracts closed using the PIEE CCO Module or script closeout procedures is authorized, but not required, in lieu of posting the PIEE generated DD Form 1594 to close the PCF cabinet. IAW DFARS PGI 204.804(1)(iv) and AFARS Part 5104.802(f)(i), downloading the DD Form 1594 from PIEE EDA and uploading into PCF is not required if the standardized MFR or other appropriate MFR is used. The MFR does not need to be signed or dated in order to reduce the administrative burden of closing contracts.

c. An unsigned DD Form 1594 in EDA is a valid contract completion statement indicating the contract is closed. The fact that the DD Form 1594 is in EDA means that the 1594 was entered into EDA because it was an automated closeout process as authorized by FAR 4.8, to include the closeouts that occurred as part of the EDA clean-up activity initiative conducted by the Office of the Undersecretary of Defense – Acquisition and Sustainment, Assistance Secretary of Defense (Acquisition)DPCAP.

ACC Acquisition Instruction

d. Financial Management Regulation (FMR) and Contract Closeout

i. FMR Chapter 3 Volume 8 paragraph 16.8.2.5 identifies the financial manager as the accountable party for the identification of dormant funds through attained reasonable assurance of future commitments, obligations, expenses, and disbursements. Prior to a contract completion statement and upon notice of final payment, the financial manager must provide the contracting officer a document containing the contract number, notice of final payment, remaining dormant balance, and a request for the contracting officer's written consent **or** issuance of a unilateral contract modification to de-obligate excess funds.

ii. FMR Chapter 3 Volume 8 paragraph 16.8.2.6 states that for contract closeout, the contracting officer distributes a DD Form 1594, Contract Completion Statement or electronic equivalent as described in DFARS, PGI 204.804.

iii. A de-obligation modification is not needed to de-obligate excess funds if the excess funds amount is annotated in block 5 of the DD 1594 IAW DFARS PGI 204.804(1)(v).

4.806 Transfer of Contract Files.

a. All contract transfers external to a SCO organization must be precoordinated with the organization's assigned HQ ACC Enterprise Support Division (ESD) POC to ensure workload remains balanced, aligned within category management principles, and properly resourced.

b. Contract Transfers Internal to the Army: Workload shifts may result in active contract vehicles transferring between Army organizations, Army Contracting Command Senior Contracting Officials (SCOs) or within a single SCO organization. When these transfers occur and the procurement office Department of Defense Activity Address Code (DoDAAC) of the two offices (transferring and gaining) are different, it is the execution of the modification changing the 'issued by' and potentially the 'administered by' organizations that completes the contract transfer. Two modifications must be executed, one by the transferring procurement office and a subsequent modification by the gaining procurement office receiving the transfer (see procedures below). To maintain the integrity of all procurement system data, coordination between systems administrators and contracting personnel is critical and a transfer meeting must be conducted prior to modification execution. During the transfer meeting, the contract and all applicable contracting systems involved should be reviewed. System related issues must be corrected prior to transfer. Contracting offices shall follow the transfer procedures below to ensure a successful transfer:

i. The transferring office (i.e. the procuring contracting office transferring the contract vehicle to a new division or SCO with a different Army DoDAAC) will complete the following actions:

1. PDS Compliance: Ensure the contract is PDS compliant. Non-compliant actions shall not be transferred.

2. System Reviews: The following systems shall be reviewed, as applicable, both pre and post transfer. Pre-transfer, the review ensures accurate and up-to-date information and ensures identification of any system issues for correction prior to transfer. Post-transfer, the review ensures the new procuring and administrative contracting office DoDAACs and point of contact information are updated in the applicable systems. Coordinate with your organization's system administrators to ensure updates in the systems identified below are processed.

ACC Acquisition Instruction

PADDS	EDA	JAM/SPM
VCE-PCF	Indexing	CPARS
SPOT	eSRS	Pay Office
CBAR	LMP/GFEBS	FPDS

3. Modification: Execute a unilateral modification transferring Issue Office responsibilities and Administrative Responsibilities, if applicable. Recommended Section A narrative language is as follows:

“The purpose of this modification is to change the Issue Office from SCO 1 – DoDAAC TO SCO 2 – DoDAAC. The contract administration office is changed from SCO 1 – DoDAAC TO SCO 2 DoDAAC. All other terms and conditions remain unchanged.”

4. Contract Action Report (CAR): Ensure the CAR is completed. Select “*Other Admin Action*” in the “Reason for Modification” field on the CAR. IAW DFARS PGI 204.606(4)(iv), DoD offices shall *not* use the “*Transfer Action*” value in the “Reason for Modification” field on the CAR unless transferring the contract to a non-DoD contracting office (e.g. Department of Interior).

5. PCF: Upload all documents to the Paperless Contract File (PCF) and coordinate with your organizations PCF administrators to transfer the PCF cabinet to the gaining office or organization.

6. Other:

A. Verify all outstanding Corrective Action Requests (CAR) are closed in the Product Data Reporting & Evaluation Program (PDREP) CAR Module.

B. Communicate the transfer with Freedom of Information Act (FOIA) Officers and Security Managers, as needed.

ii. The gaining office (i.e. the procuring office receiving the transferred contract vehicle) will complete the following actions:

1. Modification: Execute a unilateral modification accepting Issue Office responsibilities and Administrative Office responsibilities, as applicable.

A. Recommended Section A narrative language is as follows:

“The purpose of this modification is to (1) Accept Issue Office responsibilities from SCO 1 DoDAAC to SCO 2 DoDAAC, (2) accept administration office responsibilities from SCO 1 DoDAAC to SCO 2 DoDAAC, (3) update DFARS clause 252.232-7006, Wide Area Workflow Payment Instructions, as applicable and (4) update any other change to DoDAACs or points of contact in the contract. All other terms and conditions remain unchanged.”

B. In the contract writing system, ensure the *Issue By* block has the gaining offices DoDAAC and the *Administration Office* block is updated, if required.

C. Update all clauses and instructions referencing the transferring offices DoDAAC and points of contact.

ACC Acquisition Instruction

D. Ensure pay office is correct on the modification. The Payment Office DoDAAC should only change if funds are being moved to a new system and entitlement processes will not remain in the old system.

E. Distribute the modification to all required parties.

2. CAR: Ensure the CAR is completed. The *Issue By* DoDAAC must reflect the gaining offices DoDAAC. Select “*Other Admin Action*” in the “Reason for Modification” field on the CAR.

3. System Reviews: Ensure all systems identified in section 4.806(b)(i)(2) above are updated, as applicable.

c. Contract Transfers External to the Army: When transferring workload outside of the Army, legal assistance should be obtained. Memorandums of Understanding, Economy Act determinations and Interagency Agreements may need to be executed. A continued contract shall be executed in accordance with DFARS 204.1601(c) and the procedures at DFARS PGI 204.1601 (c). The transferring contracting office must execute a Determination & Finding (D&F), signed one level above the contracting officer, explaining the external transfer to meet the requirements of DFARS PGI 204.1601(c)(i)(A). Lessons learned from problems with previous transfers to a non-Army organization via a modification resulted in the conclusion that the continued contract is the best solution between Agencies (both internal and external to the DoD).

4.807 Transition to Army Contract Writing System (AWCS)

a. In order to notify industry of the upcoming transition to AWCS and the potential issues that may occur, KOs shall include the language referenced below in all solicitations, contracts, and orders, grants, and non-FAR agreements as specified.

i. Solicitations: Use the language found in Attachment 4.3 titled “Army Contract Writing System (ACWS) Transition Information for Offerors” in all:

- Solicitations originating in PADDs or SPS/PD2
- Solicitations originating in ACWS until your DoDAAC’s first successful ACWS award is confirmed

Note: KOs are not required to add this language to open solicitations if the solicitation is expected to close by 31 July 2024, but should include the language if it can be added to an amendment issued for any other reason. If the language is not added to an open solicitation, follow the instructions for contracts, below, to include the AWCS language at the time of award.

ii. Contracts: Use the language found in Attachment 4.4 titled “Army Contract Writing System (ACWS) Transition Information for Contractors” in all:

- New awards originating in SPS/PD2 or PADDs (including those already containing the ACWS solicitation language)
- New awards originating in AWCS when the solicitation originated in SPS/PD2 or PADDs

ACC Acquisition Instruction

- Existing contracts, indefinite delivery vehicles (IDVs), and agreements with a period of performance or delivery schedule that may exceed 31 October 2024 (including any extension or option clauses)
- New IDVs originating in ACWS where one or more organizations that haven't deployed ACWS yet are allowed to place orders

iii. **Orders.** Use the language found in Attachment 4.5 titled "Army Contract Writing System (ACWS) Transition Information for Contractors - Orders" in all:

- New orders originating in SPS/PD2, PADDs, or AWCS against external contracts
- Existing orders against external IDVs where the order's period of performance or delivery schedule may exceed 31 October 2024

iv. **Non-FAR Agreements & Grants:** Use the language found in Attachment 4.6 titled "Army Contract Writing System (ACWS) Transition Information for Contractors – Non-FAR Agreements & Grants" in all:

- SPS/PD2 or PADDs documents created to fund or otherwise support a Grant or Non-FAR Agreement.

b. To save resources, KOs are encouraged to add this language via the next naturally occurring modification to any given contract, order, or agreement, provided this language makes its way into all relevant actions by 31 October 2024. If no other modifications will be issued before 31 October 2024, a separate modification may be necessary to add this language.

PART 5 – PUBLICIZING CONTRACT ACTIONS

SUBPART 5.4 – RELEASE OF INFORMATION

5.403 Requests from Members of Congress.

KOs shall immediately report all Congressional contacts to the ACC Congressional Affairs Team in accordance with [ACC Command Policy Memorandum \(CPM\) 360-1 – Congressional Relations and Contacts](#). While employees are encouraged to maintain open lines of communication with Congressional Offices, it is imperative to report such contacts through local command channels to the [ACC HQ Congressional Affairs Team](#).

For other external inquiries, all written or oral, such as State or Local Government Legislative Officials, Office of Inspector General, or outside Agency representatives, shall be reported through the proper command channels and local procedures shall be followed.

PART 7 – ACQUISITION PLANNING

SUBPART 7.1 – ACQUISITION PLANS

7.104 General Procedures.

Acquisition Plans. All formal acquisition plans must include the following on the front page, "This document contains proprietary or source selection information related to the conduct of a Federal Agency procurement. The disclosure and receipt of this information is restricted by the Office of Federal Procurement Policy (41 U.S.C. Div. B of subtitle I). The unauthorized disclosure of this information may subject both the discloser and the recipient to the contractual, civil, and/or criminal penalties as provided by law."

7.104-100 Reachback and Mission Support.

a. In accordance with [ACC Command Policy Memorandum \(CPM\) 715-6 – CONUS and OCONUS Reach-Back Contracting Support](#), Strategic sourcing, Centers of Excellence, Contracting Brigades, and Contracting Centers, (not necessarily in that order or to that extent) with a specific area of expertise will be used to execute reach-back support. All ACC organizations shall refer to the CPM for the latest procedures regarding reach-back support.

b. In accordance with [ACC OPORD 17-04 – ACC Mission Support](#) and [its supporting FRAGOs](#), ACC will execute contracting support in military and inter-organizational operations utilizing systems, external and theater support contracts for global operations in support of the six Army Service Component Commands (ASCCs): USARCENT, USAREUR, USARNORTH, USARSOUTH, USARPAC and USARAF; and one sub-unified command, USFK. All ACC organizations shall refer to the OPORD and its supporting FRAGOs for the latest procedures regarding mission support.

PART 9 – CONTRACTOR QUALIFICATIONS

SUBPART 9.1 – RESPONSIBLE PROSPECTIVE CONTRACTORS

9.103 Policy.

For IDIQ contracts, the responsibility determination made prior to award of the base contract must consider the contractor's ability to satisfy all potential orders under the contract up to the maximum quantity or value established in the base. Therefore, subsequent responsibility determinations are not required at the order level. This applies whether the base IDIQ was awarded by ACC, GSA, or another contracting agency.

PART 13 – SIMPLIFIED ACQUISITION PROCEDURES

SUBPART 13.3 – SIMPLIFIED ACQUISITION METHODS

13.103 Government-wide Commercial Purchase Card (GPC).

The ACC DCG as the HQ ACC SCO will designate and appoint by memorandum one primary HQ ACC Agency Organization Program Coordinator (A/OPC) and Alternate A/OPCs as necessary to support mission requirements, consistent with DoD and Army GPC program guidance. The HQ ACC Level 3 A/OPCs will be known as the HQ ACC GPC Program Managers, and they will assume the lead role and

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serve as a liaison between Army and the SCO Level 3 A/OPCs. Contracting centers periodically may be required to submit reports on GPC performance in three areas: surveillance, span of control, and delinquencies. This information (including Refunds) will be briefed during the CONOPS Monthly Brief to the CG. The address for the HQ ACC GPC Program Managers is: HQ ACC, ATTN: ASCC COM-AD, 4505 Martin Road, Redstone Arsenal, AL 35898- 5000.

Subordinate SCOs or their designee will appoint one primary SCO Level 3 A/OPC and as many alternate SCO Level 3 A/OPCs as necessary to support the subordinate organization's mission requirements. A/OPCs will create their appointments within Joint Appointment Module of Procurement Integrity Enterprise Environment (PIEE). Once their respective SCOs or designee has completed the appointment process, the SCO Level 3 will notify the HQ ACC GPC Program Managers that their appointment is ready for endorsement. HQ ACC GPC Program Managers will validate that all required training is complete and provide a signed endorsement to Army Level 2 and US Bank to complete the process.

HQ ACC GPC Program Managers responsibilities include:

- Monitor, provide guidance, and implement new processes, as directed by DPCAP and DASA(P)
- Conduct procurement management reviews (PMRs) of SCO Level 3 A/OPC to assess internal management controls, guidelines and procedures ensuring that SCO Level 3 A/OPCs are conducting required GPC audit and surveillances.
- Identify trends and provide oversight of corrective actions based on audit findings.
- Monitor Insights on Demand and generate Access Online reports to identify GPC program deficiencies.
- Incorporate risk management controls and practices into GPC policy and guidance to mitigate identified risks.
- Resolve escalated GPC issues and concerns submitted by SCO Level 3.
- Disseminate GPC program-related information.

PART 15 – CONTRACTING BY NEGOTIATION

SUBPART 15.6 – Unsolicited Proposals

15.6 Unsolicited Proposals

In accordance with DA Pamphlet (PAM) 70-3 dated 17 Sep 2018, AMC has management responsibility for the Army's Unsolicited Proposals (UP) program. HQ ACC is responsible for providing procedural guidance for accepting and processing UPs received under AMC.

In addition, HQ ACC has designated a UP coordinator within the CONOPS to process incoming UPs. The UP coordinator's responsibilities are clearly delineated in the DA PAM 70-3.

a. HQ ACC will be the entry point for all UP proposals with the following guidance. UPs shall be mailed to the following address:

- Army Contracting Command Headquarters 4505 Martin Road
Redstone Arsenal, AL 35898-5000 ATTN: Contracting Operations

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- Electronic UPs shall be clearly marked as an UP and submitted to the ACC CONOPS mailbox at: usarmy.redstone.acc.mbx.acc-contracting-operations@army.mil.

b. ACC CONOPS UP coordinator will review the UP with assistance from any of the contracting organizations' customers and will determine if the UP is valid in accordance with FAR 15.6 and DA PAM 70-3 as follows:

- Be innovative and unique;
- Be independently originated and developed by the offeror;
- Be prepared without Government supervision, endorsement, direction, or direct Government involvement;
- Include sufficient detail to permit a determination that Government support could be worthwhile and the proposed work could benefit the agency's research and development or other mission responsibilities;
- Not be an advance proposal for a known agency requirement that can be acquired by competitive methods, and
- Not address a previously published agency requirement.

c. The UP coordinator will continue processing the UP in accordance with FAR 15.6 and DA PAM 70-3 through disposition of the UP.

d. Attachment 15.1, UP Evaluation Form provides a structured approach to the evaluation of the UP.

PART 16 – TYPES OF CONTRACTS

SUBPART 16.1 and PGI 216.104 and 216.401 – Performance Based Logistics Contracts

In the design and oversight of Performance-Based Logistics (PBL) contracts, the KO and acquisition officials should:

- Use incentive-fee contract types if possible to help mitigate pricing risks and motivate performance enhancements.
- Avoid using cost-plus-fixed-fee contracts if possible, or include an explanation of specific impediments to negotiating an incentive-fee contract type within written contract-type justifications.
- Assess prior contract price variance (negotiated vs. actual price), taking into account Defense Federal Acquisition Regulation Supplement PGI 216.403-1 and Assistant Secretary of the Army (Acquisition, Logistics and Technology) contract-type justification guidance. Also, avoid using firm-fixed-price contracts unless written support within the contract file shows historical price variance less than 4 percent or other practical validation of price certainty.

SUBPART 16.5 – Indefinite Delivery Contracts

16.505(a)(4) – Ordering/Army Computer Hardware Enterprise Software and Solutions (CHESS) Acquisition Compliance

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- a. The requirements under CHES contracts must comply with all FAR and DFARS requirements, specifically brand name justification requirements. CHES is a suite of decentralized Multiple Award Indefinite Delivery / Indefinite Quantity (ID/IQ) contracts and General Schedule Administration (GSA) Blanket Purchase Agreements. These contracts/ agreements provide continuous vendor competition for best value and consolidation of requirements to maximize cost avoidance and leverage the Army's buyer power.
- b. The [CHES website](#) contains links to policies regarding the utilization of the CHES Program, training and tutorials, and ordering guides for potential ordering offices to follow when placing orders under the Multiple Award ID/IQ contracts and GSA Blanket Purchase Agreements.
- c. If there are questions about brand name justifications from other contractors (to include concerns about the inaccuracy of the brand name), KOs must perform a written analysis of the brand name and other solutions offered and include in the official contract file.
- d. FAR 16.505(a)(4), Ordering, outlines requirements to justify restricting consideration to an item peculiar to one manufacturer (brand-name) set forth at FAR 11.105, Items peculiar to one manufacturer. This includes posting the justification when required. Thorough and documented market research is also required to support rationale for decisions.
- e. ACC SCOs shall include key internal controls specific to the Army CHES program in their respective Management Control Evaluation Checklist at AFARS Appendix BB.

PART 17 – SPECIAL CONTRACTING METHODS

SUBPART 17.5 – Interagency Acquisitions and “Offloading”

17.502 Procedures.

[ACC CPM 715-4 – Interagency and Interservice Support](#) provides ACC's procedures, requirements, and responsibilities for supporting, or allowing use of, ACC contracts by Non-DoD Government agencies, DoD agencies, or Military Services (other than Army) and to ensure ACC awarded contracts are properly administered when providing interagency or inter-service support. Per CPM 715-4, ACC is resourced only to provide support to its aligned customers. As such, ACC leadership must ensure that non-Army use of ACC contracts and contract support is in the best interest of the ACC, Army and the DoD; is provided in a manner that minimizes impact to ACC resources; and does not interfere with established missions. Except when the contract expressly allows for decentralized awards and administration, the procuring contracting office SCO is the deciding official for use of ACC contract or contract support. SCOs will ensure that the procedures in CPM 715-4 are met prior to providing support to non-Army requiring activities / requesting organizations.

PART 19 – SMALL BUSINESS PROGRAMS

SUBPART 19.2 - POLICIES

19.201 – General Policy

KOs should advise the Garrison/Customer to coordinate with their local assigned Small Business office as well as their appropriate Small Business Administration (SBA) office representative when installation-support services under consideration for an intergovernmental support agreement (IGSA) would affect an existing and/or follow-on small business contract. This coordination should be done as early in the acquisition planning process as practicable.

5119.201 – General Policy

The DD Form 2579 requirement is satisfied at the base IDIQ level for single-award IDIQs. A separate DD Form 2579 is not required for orders under single-award IDIQs if the orders are within the overall scope, period of performance (PoP) and total value of the base award. If the base IDIQ is amended to increase the scope/PoP/value of the contract, the original DD Form 2579 shall be amended to reflect the changes prior to executing the order. A copy of the amended DD Form 2579 shall be filed in the base contract file in PCF.

PART 22 – APPLICATION OF LABOR LAWS TO GOVERNMENT ACQUISITIONS

SUBPART 22.17 – COMBATING TRAFFICKING IN PERSONS

222.1770 Procedures

a. ACC Enterprise CTIP Guidance:

i. Trafficking in Persons, also referred to as human trafficking, is the use of force, fraud, or coercion to compel a person to provide labor, services, or commercial sex. Any minor (under 18 years of age) involved in commercial sex is a victim of human trafficking. Trafficking in Persons includes elements of recruiting, harboring, transporting, providing, or obtaining a person for the purpose of exploitation. The United States Government has adopted a policy prohibiting trafficking in persons – CTIP. All contractors shall follow all the requirements stated in FAR clause 52.222-50 – Combatting Trafficking in Persons.

ii. CTIP compliance is a contractual requirement that contractors shall follow. The authority for KOs/CORs to surveil the contract and perform CTIP inspections lies in the clause 52.222-50 Combating Trafficking in Persons. Additionally, contractors are required to fully cooperate with the Government in our surveillance of CTIP compliance. Contracting Officers may inspect any contract regardless of if a formal CTIP plan is required.

iii. ACC has established the following ACC Enterprise CTIP Guidance applicable to all organizations.

iv. The HQ ACC CONOPS Enterprise Support Division is responsible for providing guidance to the field for evaluating, complying, and reporting on CTIP. Compliance with the CTIP surveillance requirements will be reviewed through the PMR process.

b. ACC SCOs CTIP Subject Matter Expert (SME)/Team:

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i. ACC SCOs shall establish a designated CTIP SME and/or Team that may include 1910s and/or 1102/51Cs responsible for the SCOs CTIP program. The SME/Team shall be responsible for guidance/ oversight of the organizational CTIP program as well as the “go-to” personnel for any CTIP related inquiries. Additionally, SME’s/Team shall identify contracts that are at risk for CTIP occurring and ensure that inspections are accomplished on these contracts.

ii. The SCOs SME/CTIP Team will provide guidance to the contracting workforce and CORs on the CTIP procedures to be followed during contract surveillance. Additionally, the CTIP SME/Team shall ensure CTIP surveillance is accomplished and was adequate to ensure the contractor’s performance is meeting the requirements of the CTIP clause in the contract. COR’s CTIP surveillance checklists should be supplemented with the contractor’s CTIP Compliance Plan factors/questions to ensure the plan is being followed.

iii. In the event of suspicious behavior and possible misconduct found during surveillance, the CTIP SME/Team is responsible for reporting the information to the appropriate authorities and tracking as the incident(s) are investigated.

c. **Contract Surveillance (CORs):**

i. In order to surveil the contractor’s CTIP compliance IAW FAR 52.222-50, CORs must be trained on CTIP procedures. Utilizing the checklists/Job Aide referenced below in Paragraph c(iii), tailored for your organizations particular Area of Responsibility (AOR) and the contractor’s CTIP Compliance Plan, CORs shall perform the following. (Note: Additional guidance and information may be provided by the SCO’s CTIP SME/Team.)

1. Management Reviews include inspection of management, administrative, and employee records of prime contractors holding a government contract. These are used to ensure contractors are abiding by contract and host nation requirements, as well as ensure employees are receiving the proper entitlements as stated in their employee contracts and host nation laws.

2. Employee Interviews include interviewing employees delivering supplies or performing services under a government contract. These can be used to gain information regarding their employers and work environment and can help develop specific focus areas during Housing Inspections and Management Reviews.

3. Housing Inspections are the inspection of Government contractor provided housing. These are used to ensure employees have accommodations that meet host country housing and safety standards.

ii. If, during surveillance, a potential CTIP violation is found, CORs shall report the suspicious behavior and possible misconduct immediately the KO for review who will then report violations to the CTIP SME/Team. The CTIP SME/Team will report the potential CTIP violation to the appropriate officials for investigation.

iii. Additional Information, Training, Checklists and Job Aides available for use by the CORs are found at:

1. [DASA\(P\) Job Aide](#)
2. **CTIP Additional Info /Checklists/Training:** www.ctip.defense.gov

PART 25 – FOREIGN ACQUISITION

SUBPART 25.73 – ACQUISITION FOR FOREIGN MILITARY SALES

225.730 Foreign Military Sales (FMS).

a. Contracting Support Brigades (CSB) may only execute FMS work if the SCO determines that procurement of the materiel or service requests fall within the scope of the CSB's mission. CSBs are not funded, staffed, or designated to execute FMS work. The CSBs are forward deployed units with regular turnover and minimal staffing that support the warfighter with theater support and operational contracting. However, the CSBs may provide limited support to the ACC FMS program as specified in this guidance. ACC contracting Centers are funded, staffed, and designated to execute FMS work. The Centers have expertise in program-supported acquisition, they have the ability to create a long-term, dedicated team of contracting professionals with extensive specialized experience to support the FMS requirements, and they already have the expertise to perform the tracking and reporting necessary to ensure that the work is properly funded.

b. Acquisition professionals must be able to identify FMS requirements. The following are indicators that will help identify an FMS requirement:

- i. The Foreign Military Sales Trust Fund Administrative Surcharge Account Handbook for the Security Cooperation Organizations
(<https://www.dsca.mil/Resources/Publications/Publication/Article/4051948/the-foreign-military-sales-trust-fund-administrative-surcharge-account-handbook>)
- ii. Requirements package includes a Letter of Offer and Acceptance (LOA)
- iii. Requirements package references Global Peace Operations Initiative (GPOI) and/or Peacekeeping Operations (PKO)
- iv. Request has been initiated by the Defense Security Cooperation Agency (DSCA) or the U.S. Army Security Assistance Command (USASAC)

c. CSB SCO Mission Determination: Prior to acceptance of FMS requirements for execution, the CSB SCO must make a determination whether the FMS work is within the CSB mission scope. Examples of work within the CSB's mission scope are laptops, Wi-Fi, catering services (in country), or minor repair orders. Examples of work that has recently identified to be outside of a CSB's mission scope include personal protection equipment, night vision devices, medical kits/equipment, and multi-national training. These examples are not an exhaustive list.

d. If FMS requirements are not accepted, the CSB returns the requirement to the customer immediately and advises them to reach out to their USASAC Country Program Manager Forward (CPM-F) or their assigned Security Cooperation Officer to obtain guidance and support. The USASAC CPM-F or Security Cooperation Officer will be able to redirect their requirement back through the appropriate channels for execution.

PART 28 – BONDS AND INSURANCE

SUBPART 28.3 – INSURANCE

228.370 Additional Clauses.

Specifically related to DFARS 228.370(b)(1) discussing DFARS Clause 252.228-7001: Ground and Flight Risk Clause, ACC's guidance is as follows:

a. Government Flight Representatives (GFR) / Ground Government Flight Representatives (GGFR) perform the contract administration services function – FAR subpart 42.302(a)(56), "Maintain surveillance of flight operations". On ACC administered contracts with DFARS Clause 252.228-7001, "Ground and Flight Risk", or references to DCMA Instruction 8210-1D, "Contractor's Flight and Ground Operations" (or previous versions), SCO's will ensure at a minimum:

i. A GFR/GGFR (as applicable) is appointed and trained IAW DCMA Instruction 8210-1D. Appointments will identify the base contract and associated task orders.

ii. GFR/GGFR's review and approve contractor's Flight and/or Ground Operating Procedures (F&GOP). Procedures shall be reviewed and approved by the GFR/GGFR initially when the contract is awarded, and at least every 12 months afterwards, or within 90 days of a change of the primary GFR or change of contractor procedures. Once F&GOP's are approved, they become contractual and provide the framework for execution of flight & ground operations.

iii. GFR/GGFR performs surveillance IAW the QASP and F&GOP. This service will be considered as a high degree of consequence of failure for risk ratings. The QASP must address the frequency by which each characteristic is to be inspected. The QASP must contain the inspection checklists that will be used for surveillance.

iv. GFR/GGFR's shall conduct surveys of each designated contractor's flight and ground operation IAW DCMA Instruction 8210-1D, Section 10.16.

v. All evidence of non-conformance identified during surveillance or surveys will be properly documented IAW ACC AI 46.407.

vi. All applicable roles and responsibilities as required in DCMA Instruction 8210.1D are performed.

vii. VCE-PCF will be the system of record for documenting all actions taken to support FAR 42.302(a)(56). Ensure at a minimum that appointment letters, training records, F&GOP and approval letters, Surveys and NCRs are filed in VCE-PCF. The GFR/GGFR shall provide copies of their file to the contracting office for filing in PCF no less than quarterly. NOTE: In cases where the GFR/GGFR is also appointed as the COR on the same contract, PIII SPM may be used as the system of record only when the COR is in ACTIVE status. If the COR is terminated, or no longer performs the GFR/GGFR role, all GFRC related files must be transferred to VCE-PCF.

viii. Additional tools, guidance and support for performing oversight of flight and ground operations may be found on the DCMA "Aircraft Operations Resource Page" located at: <https://www.dcmamil/Customers/Aircraft-Operations-Resource-Page/>.

ix. Contracting offices will conduct GFR/GFRR assessments in the anniversary month of contract award to verify the requirements of 8210-1D are met. Document the review on ACC AI

Attachment 28.1, “ACC GFR/GGFR Annual Review Form” and place it in VCE-PCF, or PIEE SPM (when applicable).

PART 33 – PROTESTS, DISPUTES, AND APPEALS

SUBPART 33.1 – PROTESTS

33.102 AMC Level Protests.

A protest to the AMC Level protest forum is a “protest to the agency,” within the meaning of FAR 33.103. The AMC Level Protest Program is intended to encourage interested parties to seek resolution of their concerns within AMC as an Alternative Dispute Resolution forum, rather than filing a protest with the Government Accountability Office (GAO) or another external forum. See AFARS 5133.102 and the AMC Level Protest Procedures Program at <http://www.amc.army.mil/Connect/Legal-Resources/>. The procedures apply to the AMC Level Protest Program only.

33.104 Protests to the GAO.

Upon receipt of a notice of protest, immediately furnish a copy of the protest and a synopsis of the protest action electronically to HQAMC, Office of Command Counsel-Deputy Command Counsel at usarmy.redstone.usamc.mbx.protests@army.mil. This does not apply to the organizations supported by US Army Legal Services Agency Contracting and Fiscal Law Division (KFLD).

CICA Stay Override.

In the event of a protest, the HCA may override a stay of performance. If you are requesting a CICA Stay Override, per AFARS 5133.104(b)(1)(C) – “Within three days after the contracting office receives notification of the protest, the HCA may endorse the request for approval and electronically transmit the request and the D&F to the appropriate office in paragraphs (a)(3)(i)(1)(i)-(iii) of this section. That office shall immediately distribute the request and the D&F to the addressee in AFARS 5101.290(b)(1).” The request shall be submitted through the HCA Dropbox. HQ ACC will process the package for ACC HCA approval. See Attachment 33.1 for details on the Override Process at AMC. See Attachment 33.2 for the Override Package to be completed for any override request. Note: SECRET or higher classification documents shall not be uploaded to the HCA Dropbox. If there are additional documents which require review on SIPR, please note that in your HCA Dropbox submission and the CONOPS POC will coordinate review of the SIPR document(s).

PART 39 – ACQUISITION OF INFORMATION TECHNOLOGY

SUBPART 39.1 GENERAL

39.107 Special Instructions for Software Development and Related Acquisitions

a. Definition. Applicable actions include:

i. Software development efforts. For the purposes of this AI, a “software development effort” is defined as: development of a custom software solution; customization, integration, or modification of a commercial software solution; or software as a service.

- ii. Technical professional services that support software development efforts.
- iii. Acquisition programs executing the Software Acquisition Pathway IAW DoD 5000.87.

b. ACC has established business rules for alignment and execution of actions that fall in this category. See Attachment 1.7, Implementation of the Army Software Directive - Business Rules, for guidance on the alignment, reviews, and coordination of actions.

PART 42 – CONTRACT ADMINISTRATION AND AUDIT SERVICES

SUBPART 42.1 – CONTRACT AUDIT SERVICES

5142.190 Follow-up on contract audit reports

ACC Contract Audit Follow-Up (CAFU) Reporting

- a. Each ACC Organization (SCO) shall have at least one CAFU Monitor.
- b. Each CAFU Monitor shall ensure they complete their monthly update of the CAFU Tracking System IAW DoDI 7640.02. Also, all CAFU Monitors shall post their completed Bi-Annual Overage Audit Review Board (OARB) reports (and any additional OARB's as applicable) into the SI-35 Microsoft Team Channel under the folder "Contract Audit Follow-Up (CAFU)".
- c. Congressional pulls of CAFU data are Bi-Annual on 31 March and 30 September. Organizations should meet early in March and September to ensure all audit data is up to date and complete in the CAFU system. Data which is not in the CAFU system on those dates is considered incomplete.
- d. Each SCO, as applicable, shall submit the required Bi-Annual OARB Reports to ACC HQ Contract Integration Management Division (CIMD) 10 days prior to the 30 November and 31 May IAW AFARS 5142.190-4(b). These reports will be consolidated by ACC HQ and submitted to DASA(P). The ACC POC for submittal is Mark A. Vaccaro, mark.a.vaccaro2.civ@army.mil.
- e. Monthly ACC CAFU Command & Staff slides will be posted in the above mentioned CAFU folder contained within the SI-35 Microsoft Team Channel.

SUBPART 42.2 – CONTRACT ADMINISTRATION SERVICES

42.202 Assignment of contract administration.

ACC Internal Contract Administration Delegation: When necessary, contract administration services may also be delegated to internal ACC organizations IAW requirements identified in FAR 42.202. The delegation should only include functions that are applicable to the contract administration requirements and may be negotiated by the contracting office receiving the administration delegation IAW with FAR 42.202(g) based on the receiving organization's capabilities. The receiving organization should ensure the delegated functions are supportable by the administration office based on

experience, training and/or available resources (internally or from Contracting Officer Representatives (CORs)). The procuring and administration contracting offices should work together to develop a plan that provides the best solution for complete contract administration oversight by both offices as a team. Contract Administration Services (CAS) delegations between ACC organizations (not DCMA) are to be processed through the [ACC CAS Delegation Tool](#).

SUBPART 42.3 – CONTRACT ADMINISTRATION OFFICE FUNCTIONS

42.301 General

Contract Receipt and Review (CR&R): In support of delegated functions IAW FAR 42.301, the delegated contract administration office shall perform CR&R within 30 days of: 1) receipt of the delegation, 2) the rotation/reassignment of administrative personnel, and/or 3) annually from date of delegation. The purpose of CR&R is as follows (the list is not all inclusive):

- a. To identify contract risk level and determine level of administration effort required.
- b. To identify contract requirements needing administration.
- c. To ensure the administrative team has access to all contract documents, attachments, and exhibits necessary to administer the contract IAW the delegation.
- d. To identify any contract deficiencies that would prevent proper administration of the contract (such as missing a mandatory clause applicable to the area of operations).
 - i. Contract deficiencies and/or missing documentation should be reported to the Contracting Officer for correction when applicable. Deficiencies are not a basis for rejecting delegation.
- e. To ensure the delegation is feasible, suitable, and executable – that delegated tasks are those that can/should be performed in the area of operations by the unit. Reference ACC AI 42.202.
- f. To determine if a post award conference or orientation should be performed or would be beneficial.

Reference Sample CR&R form/template at Attachment 42.1.

42.302 Contract administration functions.

Contract Administration Support Plan:

a. If the risk assessment completed during CR&R was rated low, a contract administration support plan (CASP) is not required. A low risk rating must be coordinated with the procuring contracting officer (PCO) and documented in the CR&R form.

b. CR&R is analogous to mission analysis. As with any mission analysis, a plan results from the analysis. The contract administration office shall develop a CASP on medium and high risk rated contracts/orders. The level of detail should be based on risk and identify the scope and magnitude of the contract, the type of contract, and the risk to the operational mission, the force, or funds. By developing a plan, the unit identifies the resources needed to administer the contract(s), identifies any gaps in resources, identifies who will perform the delegated functions, where performance and

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administration will be executed, and annotates the frequency of contract admin tasks based on risk. This process also allows functional specialists the opportunity to identify and become familiar with the specific contract requirements requiring administration and the organizational leaders to incorporate the delegation(s) into their current and future operations.

c. Suggested contents of the CASP are listed below and could vary based on the risks and complexity of the action being delegated:

- i. Contract overview (e.g., Type, kind, \$ value, places of performance, contractor, POP, Contractor, Delegating Org, Supported unit, etc.)
- ii. Key contract requirements that have high level impact on supported unit's operational mission (key contract deliverables, not all).
- iii. Initial risk assessment (if no performance data/history available, weighted to consequence; likelihood = neutral)
 1. If multiple lines of different services – risk level of each
 2. Include rationale for rating (what is driving the risk)
 3. Highlight particularly risky areas to leadership.
- iv. Key facts, assumptions, and any limiting factors, constraints (operational from delegation)
- v. CAS organization structure; individual roles and responsibilities and execution strategy
 1. Manning requirements by location, unit, and function
 2. Any needed augmentation
- vi. Internal logistics and budget requirements (if applicable)
- vii. Key stakeholders and planned stakeholder engagements (support unit(s), contractor, Boards, etc.)
- viii. Milestone/timeline (if applicable)
- ix. Key administration tasks that are anticipated to drive workload (and therefore manning); consider tasks that will:
 1. Be a resource driver,
 2. Have direct impact on operations, force, or funds,
 3. Have visibility to either Government or contractor leadership (or both),
 4. Feed into mission statistics or metrics.
- x. Required Outputs from the contract admin team and frequency, e.g.:
 1. Performance Feedback Monthly
 2. CPARs input annually
 3. Cost monitoring reports
 4. Quality Assurance Inspections
 5. PMSA
 6. CTIP compliance reviews

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7. Contract Safety Reviews
 8. Security Reviews
 9. System audits
- xi. Contracting Officer Representative (COR) Requirements (by location and function/line of service): Provide COR oversight and establish a surveillance plan. The administrative contracting officer (ACO) shall collaborate with the PCO and requiring activity to determine the appropriate COR coverage and develop a COR baseline (i.e., determine the appropriate number of CORs and where they should be located). This will help in establishing expectations up-front, with the customer, as to resources they will need to provide proper surveillance. It will also help the contract administration team determine ACO/QAS resources that will be needed to maintain adequate COR management/oversight.
1. The “COR baseline” can be used as a reporting mechanism/metric to gauge the customer’s support in providing necessary CORs.
 2. The COR baseline can also be used as a tool to monitor where CORs are needed, how long they are expected to serve and when a replacement will be needed.
- xii. Significant contract deficiencies reported to the PCO for adjudication.
- d. At a minimum, the CASP will be provided or briefed to the Center, MICC, CSB, or ACC Commander or SCO accepting the delegation.

Paperless Contract File (PCF)

- a. IAW AFARS 5104.802(f), delegated contract administration offices within ACC are to be provided access to the contract administration folders in the PCF System to allow for records to be maintained in the official filing system of record. The delegated office is responsible for notifying the PCO when personnel changes occur so that access to PCF may be updated. The delegated admin office will provide (and update as necessary) the list of personnel needing PCF access to the procuring office. The procuring office will grant access to the admin office personnel.
- b. The ACO, or other delegated CAS team member, will upload official contract documents in the appropriate folders within PCF to include, but not limited to, the following:
- i. ACO warrant and confirmation of transmittal to the Contractor
 - ii. PCO Delegation Letter and Delegation Matrix
 - iii. Contract Receipt and Review Checklist
 - iv. Contract Admin Support Plan (if applicable)
 - v. Letters of Technical Direction (LOTD)
 - vi. Any ACO issued approvals, consents, letters, etc.
 - vii. Miscellaneous Contract Documents (e.g. post award conference information, communication with contractors)
- c. Most service administration documentation should be posted in PCF under G. Services Contract Administration>01. Services Contract Administration Documentation or I. Administration (Contract/Order/Agreement/Grant/OTA)>08.Administrative Contracting Officer (ACO) Documentation.

d. If an applicable PCF folder does not exist, subfolders should be created under the base folder 08. Administrative Contracting Officer (ACO) documentation.

e. When Property Administration and/or Quality Assurance requirements are delegated, reference AI requirements under Part 45 and 46.

PART 45 – GOVERNMENT PROPERTY

SUBPART 45.1 – GENERAL

245.103-70 Furnishing Government property to contractors

[Numbering continued from DFARS PGI]

(3) Responsibilities:

(i) Requiring Activity:

A. Determine to provide Government Property (GP) and submit the justification to provide GP IAW DFARS PGI 245.103-70.

B. Specify any additional terms and conditions related to GFP being provided on the attachment beyond those contained in the FAR part 45 and DFARS part 245 clauses in the Performance Work Statement (PWS) / Statement of Work. This includes:

1. Any Contract Data Requirements List (CDRL) property reports (e.g. inventory reports, movements, etc.), and,
2. Any special disposition instructions (such as return of specific property to the requiring activity organization).

C. Identify if this is a sustainment contract and submit sustainment contract CDRL requirements per DFARS PGI 245.103-73.

D. Submit the GFP attachment in PIEE GFP Module as part of the requirements package for attachment to the solicitation. (See steps at 245.103-72(c)).

E. Adjust and re-submit the GFP attachment if changes to the solicitation attachment were negotiated with the winning offeror or if the winning offer proposed a different GFP listing that the Government accepted without negotiation. Adjustment and re-submission must be accomplished so that the updated attachment is included in the contract award.

F. Validate that the GFP attachment is documented within Electronic Data Access (EDA).

G. Provide the GFP on the attachment per the schedule in the contract and/or GFP attachment.

H. Use the property transfer process in the PIEE GFP Module to record the Government shipment/physical transfer, contractor receipt, and contractor return of GFP.

I. Validate contractor receipt of GFP and recording of receipt in the PIEE GFP Module. Validate contractor return of GFP and recording in the PIEE GFP Module.

ACC Acquisition Instruction

J. Use the Property Position Report of the EDA Module of the Procurement Integrated Enterprise Environment (PIEE) to track property actually in possession of the contractor.

K. Ensure the fiduciary records reflect the property being provided. Reconcile fiduciary records with the GFP attachment (listing of required/authorized property (analogous to a TDA) and Property Position Report (listing on-hand property (analogous to a hand receipt)), which lists property actually in custody of the contractor when the report is generated.

L. Use PIEE GFP loss case and disposition case records for accountable property system of record (APSR) adjustments by accessing documentation within EDA. The PIEE GFP Module loss and disposition tools update the Property Position Report to reflect actual property in the contractor's custody.

M. Access the following records in the PIEE: contract, modifications, GFP attachment, Property Position Report, loss case records, disposition records. The contracting office will provide records related to property through PIEE.

N. Submit a requirement package for contract modification when changes to the GFP attachment are necessary (see 245.103-74 (3)(i)). Make changes in the GFP Module and submit to the reviewer and KO.

O. Request contractor Department of Defense Activity Address Code (DoDAACs) when authorizing contractor requisitions to the DoD supply system at Government expense. (See HQ ACC AI Part 51 for DoDAAC assignment). Submit requests through the PIEE Purpose Code Management (PCM) Module or, if an unregistered PIEE user, through the Purpose Code Management link found on the bottom of the PIEE landing page, under the "support" section.

P. Process an abbreviated Financial Liability Investigations of Property Loss (FLIPL) Without Appointing a Financial Liability Officer only to adjust property accountable records. Use the loss case records as supporting evidence. Abide by contracting office decisions of contractor liability documented in the loss case because contractor liability is a contracting office decision based on terms and conditions of the contract within the parameters of FAR Part 45. FLIPLs are processed only to satisfy Army accountable records requirements. Contracting offices/KOs, or Property Administrators have no responsibility or roles in FLIPLs other than providing the Loss case through PIEE.

(ii) Contracting Office:

A. Verify the requiring activity submitted the justification to provide GP (both GFP and CAP) as part of the requirements package, ensure that it meets the requirements of DFARS PGI 245.103-70, and file the justification in PCF. Contracting offices shall not approve GFP attachments in the PIEE GFP Module unless this justification is provided as part of the requirements package.

B. Approve GFP attachments to the solicitation, the contract, orders, and modifications (as applicable) in the PIEE GFP Module.

1. Review the requiring activity submitted solicitation GFP attachment to ensure it contains the mandatory fields.

2. Assign the solicitation, contract numbers, order numbers, and modification numbers in the PIEE GFP Module.

C. Approve GFP attachments to the solicitation, the contract, orders, and modifications (as applicable) in the PIEE GFP Module.

ACC Acquisition Instruction

- D. Validate that the GFP attachment is documented within Electronic Data Access (EDA).
- E. Include in the solicitation any evaluation factors related to providing Government Property.
- F. With assistance from the requiring activity, negotiate the GFP listing as applicable. If negotiated or the contractor proposed a different listing that the Government accepted, verify and review any changes in the PIEE GFP Module submitted by the requiring activity as a result of negotiations or accepted proposal by the winning offer.
- G. Verify proposal demonstrates the ability to meet Government stewardship requirements contained in the FAR/DFARS part 45 clauses contained in the solicitation and any additional PWS requirements through submission of a property management plan with the proposal.
- H. Attach the GFP attachment to the solicitation, contract, and order. Include in section J.
- I. Annotate "Transaction uses GFP" in the FPDS CAR when GFP is provided.
- J. Include all mandatory and applicable optional clauses specifying the property administration terms and conditions.
- K. Approve requests for a contractor DoDAAC in the PCM Module.
- L. Include requiring activity submitted CDRL requirements in solicitations and contracts.
- M. Include any requiring activity submitted property terms and conditions in solicitations and contracts only if proper and not in conflict with any required or applicable clause. Do not include blanket statements such as "IAW AR ..." because this may cause conflicting requirements with the FAR/DFARS part 45 clauses. Ensure any additional property terms and conditions beyond clauses are specific, executable, verifiable, and enforceable.
- N. Identify and nominate Property Administrators (PAs) and Plant Clearance Officers (PLCOs) to the ACC appointing authority. See CPM 715-2 and ACC AI PART 201.670 Appointment of Property Administrators and Plant Clearance Officers.
- O. Notify the applicable PA/PLCO of the pending action(s) to allow for scheduling of property administration functions.
- P. Conduct Property Management System Analysis or Contract / Order Analysis IAW ACC AI Part 45.105 on contracts administered by ACC except when the requiring activity nominates and the ACC appointing authority appoints a requiring activity PA. However, in such cases the contracting office is responsible for the correct execution of the function.
- Q. Process loss cases in PIEE on contracts administered by ACC except when the requiring activity nominates and the ACC appointing authority appoints a requiring activity PA. However, in such cases, the contracting office is responsible for the correct execution of the function. Ensure the contractor submits loss cases in PIEE.
- R. Process disposition cases in PIEE on contracts administered by ACC unless the requiring activity nominates and the ACC appointing authority appoints a requiring activity PLCO. However, in such cases the contracting office is responsible for the correct execution of the function. Ensure the contractor submits disposition cases in PIEE.
- S. Maintain GFP attachments, loss case, and disposition case records in PIEE EDA, these records are not required to be transferred to PCF. Maintain other applicable property administration records in PCF.

ACC Acquisition Instruction

- T. Provide property records (e.g., loss cases, disposition schedules/cases, contract, and modifications) to the requiring activity using PIEE.
- U. Delegate property administration requirements to the contract administration office when ACC does not administer the contract.
- V. Ensure all property is dispositioned using PIEE prior to contract closeout.

245.103-71 Transferring Government property accountability

[Numbering continued from DFARS PGI]

(3) The contract is the accountable document with the contractor. (see also FAR 45.106, DFARS 245.103-71). Because the contract specifies the terms and conditions of the contractual agreement between the Government and contractor, only property properly provided under the contract is accountable to that contract/contractor. See procedures at DFARS PGI 245.103-72 and ACC AI 245.103-72 for properly providing GFP.

(i) Contract property terms and conditions are found in the property clauses (see FAR 45.107 and DFARS 245.107) and any supplementary requirements in the Performance Work Statement (PWS) / Statement of Work (SOW)).

(ii) Use the property transfer processes at ACC AI 245.103-72(d) and the GFP Position Report in the Procurement Integrated Enterprise Environment (PIEE) Electronic Data Access (EDA) module, not the GFP attachment, to track property actually shipped/transferred to, and in possession/custody of the contractor. The GFP Position Report is located in the PIEE EDA Module under Reports utilizing the GFP Reports option.

(iii) Use the PIEE GFP Module property transfer function to record the physical transfer of property to contractors. Do not use DA 2062, DA 3161, DA 1149, or any other DA or DoD supply forms. DODI 4161.02 'Accountability and Management of Government Contract Property' and DODI 5000.64 'Accountability and Management of DOD Equipment and Other Accountable Property' requires the use of electronic transactions when transferring Government property to contractors. Using the PIEE GFP Module property transfer function meets the requirements of these two DoDI's. See ACC AI 245.103-72(d).

245.103-72 Government-furnished property attachments to solicitations and awards.

[Numbering continued from DFARS PGI]

(A) When GFP is anticipated, populate and initiate the GFP attachment in the PIEE GFP Module. Specify items serially managed, non-serially managed, and requisitioned items on separate tabs.

(B) Assign reviewer roles and process reviews within the PIEE GFP Module (reviewers are not required by the PIEE GFP Module but encouraged by the Army). Reviewers are typically the Requiring Activity's Property Book Officer, Accountable Officer, and/or Logistics Manager. Other personnel within the Requiring Activity may also be reviewers based on their need to review, such as Contracting Officer Representatives (CORs). ACC employees shall not be designated as reviewers.

(C) The contract/order GFP attachment is the listing of GFP the Government shall deliver to the contractor (see FAR 52.245-1(d)) and/or that the Government authorizes the contractor to requisition from the DoD supply system at Government expense. The attachment authorizes the contractor to

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have custody of the GFP and indicates which items are serially managed versus non-serially managed for contractor reporting under DFARS 252.211-7007. The Government is contractually required to provide the property listed on the attachment per the attachment's schedule (if a schedule is included in the attachment or other contract terms and conditions). Providing the GFP on the GFP attachment is a Government requirement as part of the contract's terms and conditions. Failure to provide the property on the attachment, or provide property per the delivery schedule / timeline (if included), may result in contractor requests for equitable adjustment (see FAR 52.245-1(d)(2)(i)) and may increase contract cost/price.

(1) The GFP attachment is not a real-time, living document tracking GFP physically shipped, provided, delivered, transferred to the contractor, or in custody of the contractor. In other words, it is not analogous to an Army hand receipt. Instead, it is analogous to an Army Table of Distribution Allowances (TDA) listing required/authorized organizational property. Therefore, items returned after use, loss, consumed, and items dispositioned are not required to be removed from the attachment because these don't change the list of items required to be provided by the Government as part of the contract terms and conditions. Using the analogous Army processes, 'turning-in' property, processing loss on a FLIPL, and/or 'clearing a hand receipt' does not change the TDA. To track property actually in possession/custody of the contractor, use the property transfer processes at ACC AI 245.103-72(e) and the GFP Position Report located in the PIEE EDA Module under Reports utilizing the GFP Reports option.

(2) There is only one GFP attachment for each contract and/or order. If changed, create a conformed, consolidated version (see DFARS 245.103-74 (3) and ACC AI 245.103-74 (3)). All GFP attachments shall be created and updated in the PIEE GFP Module except for classified contracts / Secure Environment Contracts.

(3) If "Transaction uses GFP" is annotated on the Federal Procurement Data System – Next Generation (FPDS) Contract Action Report (CAR), a corresponding GFP attachment shall be in in the PIEE GFP Module and the PIEE EDA Module. Likewise, if there is a GFP attachment, the FPDS CAR shall annotate "Transaction uses GFP" The CAR statement shall be consistently annotated as "Transaction uses GFP" on all subsequent contract actions until all GFP close out actions have been completed IAW HQ ACC AI 4.603.

(4) The GFP attachment shall be an attachment to the award of the contract or order, not modified on contract after award, unless providing GFP was not contemplated at the time of requirement definition and solicitation. Place the attachment in section J of the contract.

(i) The contract/order GFP attachment shall reflect the list of GFP included in the solicitation's GFP attachment and agreed upon during contract negotiation with the successful offeror. If there was no negotiation of the GFP listing, or no counter proposal of a GFP listing by the successful offeror, the contract/order's attachment shall match the attachment in the solicitation.

(ii) Follow procedures at 245.103-72(c) to provide GFP and add a GFP attachment to the contract/order after award, which may impact cost/price. Providing GFP when it was not contemplated at the time of requirement definition and solicitation is considered providing property after award.

(iii) Change/update the attachment per ACC AI 245.103-74 (3).

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(5) For Indefinite Delivery, Indefinite Quantity (IDIQ contracts), GFP is normally provided under the task orders / delivery orders except when GFP will be provided for use on multiple orders or provided for use to meet base IDIQ contract requirements, not order requirements. For example, a Government provided special test kit needed for multiple orders, including orders that may have concurrent periods of performance, would be listed on a GFP attachment to the IDIQ contract, not each individual order (because the same test kit cannot be provided on multiple task orders with concurrent periods of performance). However, GFP provided specific to task order / delivery order requirements shall only be listed on the order's GFP attachment, not be provided under the base IDIQ contract's GFP attachment. Do not list the same property on both the base IDIQ contract and orders' GFP attachments because Government property must be contractually accountable to a single contract (or order) and only one contract (or order) at a time (see DFARS PGI 245.102-70 (2)).

(6) Requisitioned Items.

(i) If requisition items are included in the GFP attachment, follow procedures at ACC AI 251.102 (4) to obtain a contractor DoDAAC after contract award.

(ii) Items authorized to be requisitioned from the supply system shall be listed on the "Requisitioned Items" tab of the GFP attachment. These are items that the contractor is authorized to requisition directly from the DoD supply system which will be paid for by the Government, therefore GFP.

(7) All GFP providing items for repair, maintenance, overhaul, or modification actions must be annotated on the GFP attachment.

(i) Government property for repair, maintenance, overhaul, or modification is considered GFP unless it meets the conditions of being incidental to the place of performance (see FAR 45.000(b)(5) or other conditions in FAR 45.000(b)).

(ii) In order to furnish requisitioned items or provide GFP for repair, maintenance, overhaul, or modification, a Contractor Department of Defense Activity Address Code (DoDAAC) must be established. See AI Part 51.102 Authorization to use Government supply sources for establishment of a DoDAAC.

(8) Training is available on DoD procurement toolbox at <https://dodprocurementtoolbox.com/site-pages/gfp-training> and the PIEE Web Based Training (WBT) Module at <https://pieetraining.eb.mil/wbt/>.

(9) There are four attachment types in the PIEE GFP Module: solicitation, solicitation modification, contract award, contract modification. Steps:

(i) Requiring activity initiates and populates the GFP attachment in PIEE.

1. Populate the solicitation number field using the Virtual Contracting Enterprise (VCE) Paperless Contract File (PCF) Pre-award number (PAN).

2. Complete all required (mandatory) fields in the Contract Info, Serially Managed Items, Non-Serially Managed Items, and Requisition tabs as required by DFARS PGI 245.103-72.

3. Requiring Activity must coordinate with the cognizant KO to obtain

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the associated Attachment Number, Attachment Date, Solicitation, Contract or Uniform PIID Number as required on the Contract Info tab.

4. The requiring activity's DoDAAC shall be used in the 'GFP Initiator Location Code' field when initiating the GFP attachment.

5. Do not use an ACC issuing office DoDAAC / KO DoDAAC type in this field unless ACC is the requiring activity and providing ACC accountable property on an ACC property book(s). If providing ACC accountable property, use an ACC GFEBS or Property Book DoDAAC, not the issuing office/KO DoDAAC.

6. The acquisition cost is not a mandatory field on the GFP attachment but is mandatory when completing the property transfer in the GFP Module. If it is known that a specific item will be provided (instead of a generic item), enter the acquisition cost in the GFP attachment. Contractor stewardship records must contain acquisition cost, and therefore must be provided by the Government for GFP either in the attachment or the property transfer.

7. The serial number or unique item identifier (UII) is not a mandatory field. Enter serial number or UII in the comments section if known. Otherwise, the serial number and/or UII must be entered in the property transfer application.

(ii) Requiring activity reviews the attachment. The requiring activity Property Book Officer (PBO), material control officer, Accountable Property Officer (APO), and or logistics manager should normally be the reviewer. ACC employees should not be reviewers.

(iii) The KO or contract specialist generate the solicitation in the contract writing system obtaining the solicitation number. They then annotate the solicitation number in the GFP attachment and then approve it.

(iv) Use the 'create GFP attachment from existing' attachment to create the contract GFP attachment from the solicitation or solicitation amendment attachment.

(D) Government Furnished Property Module Property Transfer

(1) The GFP Module shall be used to record the Government shipment/physical transfer, contractor receipt, and contractor return of GFP to satisfy requirements to use electronic transactions when transferring Government property in DODI 4161.02 Accountability and Management of Government Contract Property and DODI 5000.64 Accountability and Management of DoD Equipment and Other Accountable Property. This includes property transfers (from contract to contract and/or order to order) per DFARS PGI 245.103-71 and delivery of contractor-acquired property per DFARS PGI 245.402-71.

(2) The GFP Module property transfer reuses data from the GF attachment, warns of discrepancies between GFP attachment and shipment, provides real time GFP position report by contract thereby tracking contractor custody of GFP, and facilitates reporting to the IUID registry. Even if the Government fails to execute its responsibility of creating the shipping documents in the GFP Module, the contractor is still responsible for reporting receipt of GFP per DFARS Clause 252.211-7007 and can select the items from the GFP attachment. If the item is not on the GFP attachment, the Government shall still use the GFP Module shipment process to document shipment/physical transfer to the contractor.

(3) The GFP Module shipment process includes the on-site physical transfer of GFP. It is the electronic method to document possession/custody has left the Government.

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(4) Use the Property Position Report of the EDA Module of the Procurement Integrated Enterprise Environment (PIEE) to track property actually in possession of the contractor.

245.103-74 Contracting Office Responsibilities.

[Numbering continued from DFARS PGI]

(2) See ACC AI 245.103-70 (3)(ii).

(3) Update the GFP attachment when changing the agreed upon Government-furnished property to be provided under the contract.

(i) Updates are required when:

(A) Any of the required (mandatory) fields of the attachment per PGI 245.103-72 (a) change;

(B) Increasing or decreasing the amount of Government-furnished property, including property transfers per PGI 245.103-71 and delivery of contractor-acquired property per PGI 245.402-71;

(C) Substituting other Government-furnished property for the property previously furnished, to be furnished, or to be acquired by the Contractor for the Government under the contract;

(D) Withdrawing authority to use property.

(ii) Changes to the GFP Attachment over the life of the contract require both a contract modification and a GFP Attachment update to create a consolidated, conformed list of property to be contractually provided under the contract.

45.105 Contractor's Property Management System Compliance.

a. All ACC Contracting Center/CSBs/MICC shall conduct analysis of the contractor's property management policies, procedures, practices, and systems (PMSA) for contracts they administer when FAR clause 52.245-1 is prescribed. PMSA's will be performed IAW [ACC Procedure P-006 "Property Management System Analysis."](#)

b. Attachments 45.1 (Clause Application Smart Sheet) and 45.2 (ACC Property Administration Desk Guide) are provided as aids to consolidate and simplify FAR and DFARS requirements in correctly incorporating the property clauses into solicitation and contracts.

PART 46 – QUALITY ASSURANCE

SUBPART 46.4 – GOVERNMENT CONTRACT QUALITY ASSURANCE

46.401 General.

a. See Attachment 46.1 “ACC’s Government Contract Quality Assurance Procedure”, which provides direction on goals, expectations, and functional requirements for Government Contract Quality Assurance (GCQA) across the command in order to correct material weaknesses in contract administration and oversight within the Army. The procedure will assist in maintaining an effective and independent Government QA surveillance program verifying services, supplies, and construction contracts conform to requirements and determining the overall effectiveness of the contractors Quality Control (QC) system. In conjunction with these procedures, each SCO will develop local QA Management Plans and Standard Operating Procedures (SOPs) as addressed in Attachment 46.1.

b. Alternate Surveillance Strategies. On-site inspections at the location where contractor performance occurs is the preferred method of oversight. However, in the event operational factors prevent on-site quality assurance or Contracting Officer Representative (COR) inspections, use of desk audits is authorized to verify contractor performance. In these circumstances, the desk audit can be in lieu of on-site inspections required by the surveillance schedule in the QASP.

i. As with on-site inspections, the overarching objective of the desk audit is to ensure contractors are meeting contract requirements. This is necessary to ensure the contract appropriately supports the Army operation as intended. It is also necessary to support contract acceptance and contract payment(s).

ii. Use of desk audits as the sole oversight methodology is authorized only in unusual circumstances. In these cases, document the rationale in the QASP. If it is known during the requirements generation process that conditions will prevent on-site inspections, (in whole or in part), then incorporate desk audit procedures into the QASP. Concurrently, tailor contract deliverables to facilitate performance verification using desk audit procedures.

iii. If nonconformance is discovered during the audit, use the Corrective Action Request (CAR) procedures contained in paragraph 46.407 below and Attachment 46.2 of this Acquisition Instruction.

iv. Desk audits can and should be tailored to meet the specific circumstances and contract requirements. Select areas to audit based on risk. Desk audit procedures can include, but are not limited to:

1. Documenting the rationale as to why the desk audit was necessary.
2. Creating a checklist to facilitate both the audit and documentation of the results.
3. Reviewing documentation/evidence of contractor performance, including but not limited to: contract deliverables, situation reports, logs, contractor internal corrective action requests, contractor internal inspections, customer surveys, pictures/videos, etc.
4. Conducting telephonic interviews with contractor personnel (including both performance and quality personnel) and/or with Government personnel receiving the contracted support.

5. Reviewing contract/contractor performance measures and results.
6. Reviewing contractor quality control activities and records for the period/service/location in question in order to verify the contractor executed effective internal controls.
7. Documenting the results of the desk audit in the appropriate file, including applicable supporting documentation.
8. Discussing results of the audit with the contractor.
9. Conducting any follow-on activities (e.g. issuing a CAR, adjustment of surveillance risk level(s), adjustment to the QASP, etc.).

46.407 General Corrective Action Request (CAR) Procedures

FAR 46.104(c) requires the contract administration office to maintain performance records of the contract including observations made (i.e. Government inspections, audits, and reviews), number of defects (nonconformance), acceptability of products/services, and actions to correct defects (i.e. CARs and contract remedies). Furthermore, IAW FAR 46.102, it is policy that nonconforming supplies or services (including construction) are rejected. This policy implies that the nonconformance is also identified and documented. Therefore, a Government identified nonconformance shall result in either a CAR or contract remedy, or in some cases, both. ACC-AI Attachment 46.2 further outlines the procedures for issuing CARs in the module. The Product Data Reporting and Evaluation Program (PDREP) CAR Module shall be used for all contract nonconformance / requests for corrective action on ACC administered contracts, regardless of whether the nonconformance is identified by the requiring activity, supported unit, contracting office, or contract administration office (this CAR Module is also used by DCMA). As part of PIEE, the PDREP CAR Module is considered a System of Record IAW AFARS 5104.802(f)(i). Use of these CAR procedures meets the requirements and intent of FAR 46.407 for nonconforming supplies or services. Letters of concern will not be used to document contract nonconformance and/or request corrective actions or in lieu of a CAR. Letters of concern may be used when the Government identifies a contractor performance concern or issues that cannot be traced to a direct contract requirement (therefore, it is not a contract nonconformance), or to supplement a CAR to communicate the seriousness of the nonconformance. See paragraph 11 of ACC-AI Attachment 46.2 for Letter of Concern procedures.

PART 51 – USE OF GOVERNMENT SOURCES BY CONTRACTORS

SUBPART 51.1 – CONTRACTOR USE OF GOVERNMENT SUPPLY SOURCES

51.102 Authorization to Use Government supply sources.

ACC provides the following guidance for Authorization to Use Government Supply Sources.

- a. Document the determination to authorize contractors requisition directly from the DoD Supply system IAW FAR 51.102 as applicable. Items that the contractor is authorized to requisition directly from the DoD supply system which will be paid for by the Government is considered Government Furnished Property (GFP).

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i. The KO should ensure the requiring activity justify the requisitioned items as part of the requirements of DFARS PGI 245.103-70 (2) in order to file a written finding supporting the requisition authorization per requirements in FAR 51.102(a) Authorization to use Government supply sources.

ii. Include FAR clause 52.251-1 (Government Supply Sources) and DFARS clause 252.251-7000 (Ordering from Government Supply Sources) when requisition items are included in the GFP attachment. See FAR part 51.102 for the considerations the determination should address.

iii. See requirements in FAR part 51 'Use of Government Sources by Contractors,' DFARS part 251, and DFARS PGI part 251 when authorizing contractor requisitions in the supply system.

b. The assignment of a DoDAAC to a contractor can only be performed subsequent to an awarded contract. DoD contractors will only be assigned DoDAACs if they have a contract with DoD that authorizes access to requisition from the DoD supply system or to provide services such as maintenance/repair that require a shipping address.

c. Contractor DoDAACs must maintain a one-to-one relationship between their DoDAAC and contract. This will aid the Government's ability to track GFP directly to the contract/contractor. (Reference DLA MEMORANDUM FOR DEPARTMENT OF DEFENSE ACTIVITY ADDRESS DIRECTORY (DoDAAD) PROCESS REVIEW COMMITTEE (PRC) AND SUPPLY PRC MEMBERS; SUBJECT: Addendum to Approved Defense Logistics Management Standards (DLMS) Change (ADC) 1300, Rules for Contractor DoDAACs (ADC 1300A) (DoDAAD/Supply); dated February 13, 2019. Paragraph 4 (b) (3))

i. Reference business rules for DoDAACs, including contractor DoDAACs in DLM 4000.25 Volume 6, December 27, 2022 Chapter 2 at <https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fwww.dla.mil%2FPortals%2F104%2FDocuments%2FDLMS%2FManuals%2FDLM%2FV6%2F0041-v6c2.docx&wdOrigin=BROWSELINK>

ii. Per reference above, paragraph C.2.4.1.2, only use the Purpose Code Management (PCM) application in the Procurement Integrated Enterprise Environment (PIEE) to establish and manage contractor DoDAACs.

d. For requisition DoDAACs, PCM validates the contract number in EDA, verifies there is a GFP attachment in EDA with at least one item on the requisition tab, and verifies the contract contains the clauses FAR 52.245-1 and DFARS 252.251-7000. Therefore, contracts must be Procurement Data Standard (PDS) compliant for the PCM Module to perform the validation checks.

e. TAC 1, TAC 2, TAC 3, and Transportation Information are needed to complete the form in PCM. A contract number is required for requisition requests. A CAGE code is required for non-requisition requests. TAC 3 is required for requisition contractor DoDAACs, the ADSN/FSN are TAC 3 required fields but don't have validation checks.

f. General steps:

- i. Contract is awarded.
- ii. Requiring Activity submits DoDAAC request in PCM.
- iii. The KO verifies and approves the request in PCM conditioned upon contract terms and conditions.

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- iv. The request is routed to the Central Service Point (CSP) for DoDAAC creation in the Army Enterprise Systems Integration Program Hub (AESIP).
- v. The DoDAAC is updated to the DODAAD by AESIP.
- vi. The KO issues a modification to identify the DoDAAC to the contractor specifying ordering instructions using this DoDAAC.

ATTACHMENTS

Attachment #	Name	Date	CONOPS Division
Attachment 1.1	HCA Process for Competitive Peer Reviews in Excess of \$1B	02-2022	ASD
Attachment 1.2	Legal Opinion Template		Legal
Attachment 1.3	HQ ACC CONOPS SCO/AIAOS Appointment Request Form	04-2025	ASD
Attachment 1.4	USAHCA Waiver Request Template	03-2024	ASD
Attachment 1.5	ACC Command Memorandum - Foreign Local National (FLN) Recognition Program Guidance and Procedures	04-2023	ASD
Attachment 1.5a	Enclosure 1 Sample SCO Endorsement Memo	04-2023	ASD
Attachment 1.5b	Enclosure 2 Application Checklist	04-2023	ASD
Attachment 1.5c	Enclosure 3 Sample Recognition Certificate	04-2023	ASD
Attachment 1.6	ACC's COR Management Plan	07-2024	
Attachment 1.7	Implementation of the Army Software Directive - Business Rules	07-2024	ASD
Attachment 1.7a	Software Strategy Brief One Pager Template with Roadmap	04-2025	ASD
Attachment 1.7b	Contracting Center Assessment Slide Template	07-2024	ASD
Attachment 4.1	MFR – PCF Closure Memo	12-2024	CDAO
Attachment 4.2	MFR – Script Contract Closeout Completion Statement	12-2024	CDAO
Attachment 4.3	ACWS Transition Information for Offerors	08-2024	ASD
Attachment 4.4	ACWS Transition Information for Contractors	08-2024	ASD
Attachment 4.5	ACWS Transition Information for Contractors - Orders	08-2024	ASD
Attachment 4.6	ACWS Transition Information for Non-FAR Agreements & Grants	09-2024	ASD
Attachment 15.1	UP Evaluation Form	04-2023	ASD
Attachment 28.1	ACC GFR/GGFR Annual Review Form	04-2023	CDAO
Attachment 33.1	Override Process at AMC	05-2021	AMC
Attachment 33.2	AMC – HCA CICA Override Package	04-2025	AMC
Attachment 42.3	Sample CR&R Form	09-2024	CDAO
Attachment 45.1	Clause Application Smart Sheet	09-2024	CDAO
Attachment 45.2	ACC Property Administration Desk Guide	09-2024	CDAO
Attachment 46.1	ACC's Quality Assurance Program		
Attachment 46.2	ACC's Corrective Action Request (CAR) Procedures	01-2024	CDAO

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